

LOCAL RECORD INDEX

Jordan v. Frisco ISD
Docket No. 120-R10-06-2026
Before the Commissioner of Education for the State of Texas

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EXHIBIT 1

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Request Updated

Complaint Details

Name of Complainant:	Stephen Ray Jordan
Address of Complainant:	13054 Cinderella Lane, Frisco, Texas 75035
Complainant Phone Number:	972-403-1231
Complainant Email Address:	srjordan@gmail.com
Add Second Complainant?:	No
Type of Complaint:	Student/Parent Complaint
Student Name:	■■■ ■■■ ■■■
Student Campus:	■■■ ■■
Select the Student / Parent Complaint Type:	Violation of a school law of the state
Please describe the decision or incident causing your complaint:	On June 9, 2026, Matthew Franks, Head Club Swim Coach and Assistant Natatorium Manager, issued written notice to Complainant titled "Report of Conduct at the NWAA Team Travel Meet." The notice announced that the

District would conduct an investigation into Complainant's conduct as a potential violation of the Parent Code of Conduct, and designated Coach Franks himself as the investigator. The notice was copied to Melissa Howard and Daiki Sato, both of whom are named subjects of Complainant's prior protected reporting through the District's Lighthouse Services ethics channel and the District's formal grievance process. Coach Franks is himself a named subject of an active USA Swimming Code of Conduct complaint filed by Complainant on June 9, 2026. The conduct described constitutes retaliation against Complainant for protected reporting in violation of TEC §26A.001(e)(1) and Board Policy FNG(LOCAL), and the assignment of Coach Franks as investigator violates the recusal requirement of TEC §26A.001(e)(2) and FNG(LOCAL) page 5. This grievance is separate and distinct from the matter currently pending before the

		Texas Commissioner of Education in Jordan v. Frisco Independent School District. Full grievance with statutory grounds, required recusals, and relief sought are being transmitted by email to the Office of the General Counsel and the Complaint Resolution Office under separate cover due to the OMB attachment limit displayed by this portal.
	Date of decision or incident:	6/9/2026
	Date you became aware of decision or incident:	6/9/2026
	Please explain how you have been harmed by this decision or incident:	Complainant has been harmed in the following ways: (1) Subjected to a Parent Code of Conduct investigation initiated in temporal proximity to Complainant's protected reporting through Lighthouse Services, the District's grievance process, the Texas Public Information Act, and USA Swimming Code of Conduct procedures; (2) Subjected to investigation by a District employee who is himself a

named subject of an active complaint filed by Complainant in a parallel forum, in violation of recusal requirements; (3) Disclosure of the investigation against Complainant to named subjects of Complainant's prior protected reporting (Melissa Howard and Daiki Sato), who were copied on the investigation notice, constituting a breach of investigative confidentiality and indicating coordination with subjects of Complainant's prior protected reporting rather than independent investigation; (4) Ongoing chilling effect on Complainant's exercise of protected reporting rights, including the rights to file grievances under FNG(LOCAL), to request public information under the Texas Public Information Act, and to file complaints with external regulatory bodies; (5) Procedural prejudice in the form of having to expend time and resources defending against an improperly initiated and improperly assigned

	investigation while parallel District proceedings remain unresolved.
Please describe any attempts you made to resolve your complaint informally, including the names of any individuals with whom you spoke and the dates of those conversations:	On June 11, 2026, Complainant submitted a written response to Coach Franks's investigation notice that included a specific question (identified as Item 5) asking whether the office conducting the investigation was aware of Complainant's other pending matters with the District and whether any coordination had occurred between offices. On approximately June 12, 2026, Coach Franks responded to Complainant's June 11 written response but did not address Item 5. On approximately June 13, 2026, Complainant submitted a second written response to Coach Franks renewing the request for a direct written response to Item 5, requesting identification of all interviewees, disclosing for the record the pendency of the USA Swimming Code of Conduct complaints involving multiple Iron Horse Aquatics coaches,

	and protecting Complainant's minor child from being interviewed without written parental consent. As of the date of this filing, Coach Franks has not provided a direct written response to Item 5. The Parent Code of Conduct investigation continues. The District has not voluntarily reassigned the investigator nor addressed the recusal concerns informally despite the Complainant's documented good-faith attempts.
Please list the remedies you are seeking for this complaint:	(a) Immediate suspension of the Parent Code of Conduct investigation initiated June 9, 2026, pending recusal of Coach Franks and reassignment to a District employee who is not a subject of Complainant's pending complaints in any forum; (b) Written confirmation that no findings, statements, recordings, or other documents generated by Coach Franks in his capacity as investigator will be retained in any FSD personnel, student, or family file or shared with any

	other FISD office or external entity; (c) Disclosure in writing of the identity of all persons who provided the "additional information regarding your interactions with meet volunteers and officials" referenced in the June 9, 2026 investigation notice; (d) Written response to Item 5 of Complainant's June 11, 2026 response, specifically addressing whether the office conducting the investigation is aware of Complainant's other pending matters with the District and whether any coordination has occurred between offices; (e) Written assurance that no further retaliatory conduct will be taken against Complainant or Complainant's minor child by any District employee in any capacity in connection with any protected reporting by Complainant; (f) If the Parent Code of Conduct investigation is to proceed at all, written commitment that it will be reassigned to a District employee who: (i) is not a subject of any of Complainant's pending complaints; (ii) holds no	
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		governance role at North Texas Swimming or any other body where Complainant has filed a related complaint; and (iii) was not a recipient of any communication concerning Complainant's protected reporting prior to assignment; (g) Such other and further relief as the District deems appropriate under TEC Chapter 26A and FNG(LOCAL).
	Do you wish to report additional incidents:	No
	Will you be represented in voicing your complaint/appeal?:	No
	Do you wish to Appeal this decision?:	Yes No
*	Date you received the response to your complaint: (MM/DD/YYYY)	
*	Please explain specifically how you disagree with the findings:	

	* Please list the remedies you are seeking for this appeal:													
	* Will you be represented in voicing your appeal?:	Yes No												
Internal Information Only														
	* Policy Codes:	<table border="1"> <tr><td>FNG</td></tr> <tr><td>FFH</td></tr> <tr><td>FFI</td></tr> <tr><td>FOD</td></tr> <tr><td>FL</td></tr> <tr><td>DGBA</td></tr> <tr><td>DIA</td></tr> <tr><td>GF</td></tr> <tr><td>EFB</td></tr> <tr><td>EFA</td></tr> <tr><td>Administrative Complaint Process</td></tr> </table>		FNG	FFH	FFI	FOD	FL	DGBA	DIA	GF	EFB	EFA	Administrative Complaint Process
FNG														
FFH														
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FOD														
FL														
DGBA														
DIA														
GF														
EFB														
EFA														
Administrative Complaint Process														
	Abated:													
	Abated Time Period:		Please enter date range such as 10/1/2020 - 11/2/2020											

Appeal of Prohibited Conduct Complete:	Yes No
Investigator Name:	
Investigator Title:	
Investigation Allegation Determination:	N/A Substantiated Unsubstantiated Partially Substantiated N/A
Date of Findings Letter: (MM/DD/YYYY)	
Investigation Certified Mail Number:	
Name of Level I Hearing Officer:	
Title of Level I Hearing Officer:	
Date of Level I Conference: (MM/DD/YYYY)	
Level I Allegation Determination:	Substantiated Unsubstantiated Partially Substantiated N/A
Level I Remedy Acceptance:	Granted Denied Granted-in-part N/A

Date of Level I Response: (MM/DD/YYYY)	
Level I Certified Mail Number:	
Date of First Appeal: (MM/DD/YYYY)	
Date Appeal Due: (MM/DD/YYYY)	
Name of Level II Hearing Officer:	
Title of Level II Hearing Officer:	
Level II Allegation Determination:	Substantiated Partially Substantiated Unsubstantiated N/A
Level II Remedy Acceptance:	Granted Denied Granted-in-Part N/A
Date of Level II Conference: (MM/DD/YYYY)	
Date of Level II Response: (MM/DD/YYYY)	
Level II Certified Mail Number:	
Message History	

Date

1

Page size:

2 items in 1 pages

On 6/15/2026 8:13:46 PM, System Generated Message to srjordan@gmail.com:

Body:

	Confirmation of Complaint Complaint # Z005911-061526
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This email serves as confirmation that the below referenced complaint was submitted on June 15, 2026. **PLEASE NOTE: If your complaint was submitted after 4:30pm or on a non-District business day, it will be received in our offices on the next business day.**

Upon receipt, your complaint will be processed in accordance with applicable Frisco ISD Board Policy and Complaint Procedures. The reference number for your complaint is **Z005911-061526**.

Your complaint will be assigned to a hearing officer or investigator, as appropriate, who will contact you within 10 District business days of the receipt of your complaint.

Please click the "REQUEST CENTER" button below to view and track the progress of your request. If you have any questions, you may reply directly to this email.

[REQUEST CENTER](#)

Complaint DETAILS

Complainant: Stephen Jordan

Complaint Submission Date: June 15, 2026

Type of Complaint: Student/Parent Complaint

Complaint Reference Number: Z005911-061526



On 6/15/2026 8:13:45 PM, **Stephen Jordan** (srjordan@gmail.com) wrote:

Request Created on Public Portal

**FRISCO INDEPENDENT SCHOOL DISTRICT
LEVEL I FORMAL COMPLAINT / GRIEVANCE
PURSUANT TO BOARD POLICY FNG(LOCAL) AND TEC CHAPTER 26A**

Filed: June 15, 2026

Complainant: Stephen Ray Jordan

Subject: Retaliation Against Parent For Protected Reporting; Misconduct in Initiating and Conducting Parent Code of Conduct Investigation

I. STATEMENT OF COMPLAINT

1. Complainant Stephen Ray Jordan files this Level I formal grievance under Frisco Independent School District Board Policy FNG(LOCAL) and Texas Education Code Chapter 26A. This grievance is separate and distinct from the existing matter currently on appeal before the Texas Commissioner of Education in Jordan v. Frisco Independent School District.

2. This grievance alleges that the District, through specific named employees, has engaged in conduct prohibited by Texas Education Code §26A.001(e)(1), by Board Policy FNG(LOCAL), and by §26.011(a). Specifically, this grievance alleges that the District has initiated and is conducting a Parent Code of Conduct investigation against Complainant in retaliation for Complainant's protected reporting under the District's grievance process and through other authorized reporting channels.

3. This grievance further alleges that the District has compounded the retaliation by assigning, as the investigator of the Parent Code of Conduct matter, a District employee who is the direct supervisor of two coaches named in Complainant's prior protected reporting, who is himself a named subject of an active USA Swimming Code of Conduct complaint filed by Complainant, and who has a documented governance conflict of interest at the regional swimming governance body where Iron Horse Aquatics is registered.

II. PARTIES

4. Complainant: Stephen Ray Jordan, parent of a minor child enrolled at Frisco Independent School District and participating in the Iron Horse Aquatics competitive swim program. Address:

13054 Cinderella Lane, Frisco, Texas 75035. Email: srjordan@gmail.com. Telephone: 972.403.1231.

5. Respondent: Frisco Independent School District.

6. District employees whose conduct is the subject of this grievance and who must recuse under TEC §26A.001(e)(2) and FNG(LOCAL):

(a) Matthew Franks, Head Club Swim Coach and Assistant Natatorium Manager, who issued the Parent Code of Conduct investigation notice on June 9, 2026 and designated himself as the investigator;

(b) Melissa Howard, FISD Swim and Dive Coordinator, named subject of the original Lighthouse Services ethics report and of pending USA Swimming Code of Conduct complaint filed by Complainant on June 9, 2026, and recipient of the June 9, 2026 investigation notice;

(c) Daiki Sato, Iron Horse Aquatics coach, named subject of the original Lighthouse Services ethics report and of pending USA Swimming Code of Conduct complaint filed by Complainant on June 9, 2026, and recipient of the June 9, 2026 investigation notice;

(d) Justin Bilgri, Iron Horse Aquatics head coach, named subject of the original Lighthouse Services ethics report and of pending USA Swimming Code of Conduct complaint filed by Complainant on June 9, 2026;

(e) Deidra Rucker, Associate Director of Athletics, who issued the May 18, 2026 Level II response in the original grievance;

(f) Shelley Anderson, Complaint Resolution Coordinator, who issued the May 20, 2026 letter dismissing the Level III appeal;

(g) Esther Kolni, General Counsel, who issued the May 21, 2026 email refusing Level III review through the appropriate forum.

III. STATEMENT OF FACTS

7. On February 26, 2026, Complainant filed an ethics report with Frisco Independent School District through Lighthouse Services, Report Number 9022620263313, identifying conduct by

Iron Horse Aquatics coaching staff including Justin Bilgri and Daiki Sato. This report is a protected report under TEC §26A.001(e)(1) and Board Policy FNG(LOCAL).

8. Between February 26, 2026 and May 22, 2026, Complainant pursued the District's grievance process through Levels I, II, and a Level III appeal filing through the District GovQA portal. The grievance addresses the absence of published advancement criteria within Iron Horse Aquatics and related procedural concerns.

9. On May 22, 2026, Complainant filed a Texas Public Information Act request, Reference Number W005772-052226, seeking District correspondence related to Complainant and the grievance proceedings. The District's cost estimate response identified 515 emails responsive to the request. Complainant accepted the cost estimate and the deposit is in transit to the District.

10. On Tuesday, June 9, 2026, at 4:35 PM Central Time, Matthew Franks, Head Club Swim Coach and Assistant Natatorium Manager, sent Complainant an email titled "Report of Conduct at the NWAA Team Travel Meet." The email announced that the District would conduct an investigation into Complainant's conduct as a potential violation of the Parent Code of Conduct. Coach Franks designated himself as the investigator and requested a phone conversation with Complainant.

11. The June 9, 2026 investigation notice from Coach Franks was sent with copies to Melissa Howard and Daiki Sato, both of whom are named subjects of the underlying Lighthouse ethics report referenced in Paragraph 7.

12. Approximately two hours after Coach Franks issued the investigation notice, on the same date of June 9, 2026, Complainant filed four Code of Conduct complaints with USA Swimming through the national Violation Reporting Form. The four complaints named Justin Bilgri, Daiki Sato, Melissa Howard, and Matthew Franks. The complaint against Coach Franks specifically addressed his supervisory role over Bilgri and Sato, his governance conflict of interest at the North Texas Swimming Local Swim Committee where he serves as Operational Risk Coordinator while coaching at a member club under complaint, and concerns regarding his role in the chain of communication leading to the District's adverse administrative actions against Complainant.

13. On June 9, 2026 at 6:32 PM, Complainant filed a Petition for Review with the Texas Education Agency Division of Hearings and Appeals in the matter of Jordan v. Frisco Independent School District. The Petition was served on the District's General Counsel by email at 6:35 PM the same day.

14. On June 9, 2026 at 8:08 PM, Complainant received written acknowledgment from Michelle Steinfeld, USA Swimming, confirming receipt of all four USA Swimming Code of Conduct complaints, including the complaint against Coach Franks.

15. On June 10, 2026 at 12:46 PM and 12:48 PM, Complainant received written acknowledgment from Adam Dayoub, Safe Sport Chair, North Texas Swimming Local Swim Committee, of the LSC notifications regarding the four USA Swimming Code of Conduct filings. Dayoub's acknowledgment specifically referenced "governance and potential conflict-of-interest considerations" and was copied to Jaime Lewis, Executive Director of North Texas Swimming, and to the full North Texas Swimming Board of Directors, which includes Coach Franks in his role as Operational Risk Coordinator.

16. On June 11, 2026, Complainant submitted a written response to the conduct investigation notice that included a specific question, identified as Item 5, asking whether the office conducting the investigation was aware of Complainant's other pending matters with the District and whether any coordination had occurred between offices.

17. On approximately June 12, 2026, Coach Franks responded to Complainant's June 11 written response. The Franks response did not address Item 5 of Complainant's response. Coach Franks's response indicated that statements would be collected from Iron Horse staff members who attended the meet.

18. On approximately June 13, 2026, Complainant submitted a second written response to Coach Franks renewing the request for a direct written response to Item 5, requesting identification of all interviewees, disclosing for the record the pendency of the USA Swimming Code of Conduct complaints involving multiple Iron Horse Aquatics coaches, and protecting Complainant's minor child from being interviewed without written parental consent.

19. As of the date of this grievance, Coach Franks has not provided a direct written response to Item 5. The Parent Code of Conduct investigation, initiated and conducted by Coach Franks

while he is himself a named subject of an active USA Swimming Code of Conduct complaint filed by Complainant, continues.

IV. STATUTORY AND POLICY GROUNDS

20. Texas Education Code §26A.001(e)(1). The District is statutorily required to adopt a grievance policy that prohibits retaliation against a student or parent for participating in a grievance. The conduct described in Paragraphs 7 through 19 constitutes retaliation against Complainant for protected reporting through the District's own grievance process, through Lighthouse Services, through the Texas Public Information Act, and through USA Swimming Code of Conduct procedures.

21. FNG(LOCAL), page 3. The District's Board-adopted grievance policy, on its face, provides that "Neither the Board nor any District employee shall unlawfully retaliate against any student or parent for bringing a concern or complaint." The conduct described above violates this provision directly.

22. Texas Education Code §26.011(a). The Board is required to address grievances concerning violations of board policy and provisions of Title 2 of the Texas Education Code. This grievance alleges violations of both, defeating any potential extracurricular carve-out under §26.011(b).

23. Texas Education Code §26A.001(e)(2). The District's grievance policy must require recusal of any person who is a subject of a complaint. Coach Franks, the named investigator of the Parent Code of Conduct matter, is himself the subject of a pending USA Swimming Code of Conduct complaint filed by Complainant on June 9, 2026, addressing the same chain of communication and the same supervisory relationships at issue in the Parent Code of Conduct investigation. Coach Franks's assignment as investigator violates the recusal requirement on its face.

24. FNG(LOCAL), page 5. The District's Board-adopted policy provides that "When a District employee is the subject of a complaint, the hearing shall be conducted by an administrator who is in a supervisory or higher organizational role. The District employee who is the subject of the complaint shall recuse themselves from reviewing the complaint at any level in the process." The District has violated this provision by assigning Coach Franks to investigate a

matter in which he is himself a subject of an active and pending complaint by Complainant in a parallel forum.

25. Disclosure breach. The June 9, 2026 investigation notice was copied to Melissa Howard and Daiki Sato, both named subjects of Complainant's prior protected reporting. The cc'ing of named subjects on a notice initiating an investigation against the parent who reported them is, at minimum, a breach of investigative confidentiality and an indicator that the investigation is being conducted in coordination with subjects of Complainant's prior protected reporting rather than independently.

V. REQUIRED RECUSALS

26. Pursuant to TEC §26A.001(e)(2) and FNG(LOCAL) page 5, the following District employees must recuse from any role in the review, hearing, or decision of this grievance:

(a) Matthew Franks. Subject of pending USA Swimming Code of Conduct complaint filed by Complainant; named investigator of the Parent Code of Conduct matter at issue.

(b) Melissa Howard. Named subject of Complainant's original Lighthouse ethics report and of pending USA Swimming Code of Conduct complaint.

(c) Daiki Sato. Named subject of Complainant's original Lighthouse ethics report and of pending USA Swimming Code of Conduct complaint.

(d) Justin Bilgri. Named subject of Complainant's original Lighthouse ethics report and of pending USA Swimming Code of Conduct complaint.

(e) Deidra Rucker. Issued the Level II response in the existing grievance now on appeal at the Texas Education Agency; the conduct described in this grievance arose during and following her involvement in the underlying matter.

(f) Shelley Anderson. Issued the May 20, 2026 letter dismissing the Level III appeal in the existing grievance now on appeal at the Texas Education Agency.

(g) Esther Kolni. Issued the May 21, 2026 email refusing Level III review in the existing grievance now on appeal at the Texas Education Agency.

27. The District is required under FNG(LOCAL) to assign this grievance to a hearing officer who has no involvement in the matters described above and who is in a supervisory or higher organizational role relative to the named subjects.

VI. RELIEF SOUGHT

28. Complainant respectfully requests the following relief:

(a) Immediate suspension of the Parent Code of Conduct investigation initiated June 9, 2026, pending recusal of Coach Franks and reassignment to a District employee who is not a subject of Complainant's pending complaints in any forum;

(b) Written confirmation that no findings, statements, recordings, or other documents generated by Coach Franks in his capacity as investigator will be retained in any FISD personnel, student, or family file, or shared with any other FISD office or external entity;

(c) Disclosure in writing of the identity of all persons who provided the "additional information regarding your interactions with meet volunteers and officials" referenced in the June 9, 2026 investigation notice;

(d) Written response to Item 5 of Complainant's June 11, 2026 response, specifically addressing whether the office conducting the investigation is aware of Complainant's other pending matters with the District and whether any coordination has occurred between offices;

(e) Written assurance that no further retaliatory conduct will be taken against Complainant or Complainant's minor child by any District employee, in any capacity, in connection with any protected reporting by Complainant;

(f) If the Parent Code of Conduct investigation is to proceed at all, written commitment that it will be reassigned to a District employee who: (i) is not a subject of any of Complainant's pending complaints; (ii) holds no governance role at North Texas Swimming or any other body where Complainant has filed a related complaint; and (iii) was not a recipient of any communication concerning Complainant's protected reporting prior to assignment;

(g) Such other and further relief as the District deems appropriate under TEC Chapter 26A and FNG(LOCAL).

VII. RESERVATION OF RIGHTS

29. This Level I grievance is filed without prejudice to and does not waive any of the following:

- (a) The pending Petition for Review in *Jordan v. Frisco Independent School District* before the Texas Commissioner of Education;
- (b) The pending Texas Public Information Act records request, Reference Number W005772-052226;
- (c) The pending USA Swimming Code of Conduct complaints involving Justin Bilgri, Daiki Sato, Melissa Howard, and Matthew Franks;
- (d) The pending Lighthouse Services ethics report, Report Number 9022620263313;
- (e) Any future right of appeal at Level II, Level III, or to the Texas Commissioner of Education arising from this grievance;
- (f) Any other legal or administrative action arising from the matters described in this grievance.

VIII. FILING INFORMATION

30. This grievance is filed through the District's GovQA electronic submission portal in accordance with FNG(LOCAL) and is contemporaneously transmitted by electronic mail to the Office of the General Counsel and to the Complaint Resolution Coordinator.

31. Complainant requests that confirmation of receipt and the assigned reference number be provided in writing within three business days.

32. Complainant further requests that the District identify, in writing, the District employee assigned to serve as the Level I hearing officer for this grievance, prior to the scheduling of any hearing, so that any recusal concerns may be raised in advance.

Respectfully submitted,

/s/ Stephen Ray Jordan

Stephen Ray Jordan, Pro Se Complainant

13054 Cinderella Lane

Frisco, Texas 75035

Telephone: 972.403.1231

Email: srjordan@gmail.com

Dated: June 15, 2026

DOCUMENTS RELIED UPON

The following documents are referenced in this grievance and are part of the record:

1. Lighthouse Services Report Number 9022620263313, filed February 26, 2026;
2. Frisco ISD Level I grievance file in the original matter, including written objection to the assignment of Coach Howard as hearing officer;
3. Frisco ISD Level II response signed by Deidra Rucker, dated May 18, 2026;
4. Letter from Shelley Anderson, Complaint Resolution Coordinator, dated May 20, 2026;
5. Email from Esther Kolni, General Counsel, dated May 21, 2026;
6. Email from Matthew Franks, dated June 9, 2026, 4:35 PM, titled "Report of Conduct at the NWAA Team Travel Meet";
7. Complainant's written response to Matthew Franks, dated June 11, 2026;
8. Matthew Franks's reply, dated approximately June 12, 2026;
9. Complainant's second written response to Matthew Franks, dated approximately June 13, 2026;

10. Petition for Review filed with the Texas Education Agency, June 9, 2026, 6:32 PM;

11. USA Swimming Code of Conduct complaint submissions, June 9, 2026, with USA Swimming acknowledgment received 8:08 PM the same day;

12. North Texas Swimming notifications dated June 9 and June 10, 2026, with Adam Dayoub acknowledgments dated June 10, 2026.

EXHIBIT 2

Kolni, Esther

From: Kolni, Esther
Sent: Tuesday, August 4, 2026 4:01 PM
To: Fouche, Todd; McClendon, Cory; Anderson, Shelley
Subject: RE: Level 1 Hearing

I think it is definitely possible that U'l sent that email because she was, indeed, assigned to conduct the Level I hearing. She was specifically chosen because she has NOT been involved in any previous conflict or communication with Mr. Jordan regarding his concerns and she is separate from/not part of the Iron Horse swim program. Thus, she is knowledgeable regarding Athletics but not a subject of the complaint nor a party involved in attempted informal resolution.

This is NOT the first time Mr. Jordan has attempted to dictate how the District investigation and grievance processes work and he has already received explanation from both me and Shelley regarding what merits recusal of a staff member and what does not. U'i is the lowest level administrator with the knowledge, experience, and ability to hear his complaint WITHOUT any issues of conflict.

I would suggest something like the following as a response:

Mr. Jordan,

Frisco ISD parent/student grievance policy, Board Policy FNG, creates a leveled process for review. The policy explains how hearing officers are assigned and specifically states, "The District-level administrator shall assign the complaint to be heard by the lowest-level administrator who has the authority to remedy the alleged problem." Ms. Womble is the lowest-level administrator with the authority and professional expertise necessary to address your concerns. She was selected because she has not been involved in any previous investigation involving you or your child, is not part of the Iron Horse program, and is not a subject of your complaint. Neither law or policy exclude her from this role. Additionally, the leveled grievance process makes it inappropriate for there to be continued communication between you and other District administrators, including me, who may need to become involved in this matter in the event you appeal to a higher level.

Ms. Womble will be the hearing officer for your Level I grievance. Please work with her to find a mutually agreeable meeting time. We sincerely hope the process leads to resolution of your concerns as soon as possible.



Esther Kolni, J.D., LL.M., M.Ed.

General Counsel

469.633.6057

kolnie@friscoisd.org

From: Fouche, Todd <FoucheT@friscoisd.org>
Sent: Tuesday, August 4, 2026 1:53 PM
To: McClendon, Cory <McClendC@friscoisd.org>; Kolni, Esther <kolnie@friscoisd.org>; Anderson, Shelley

<andersonsh@friscoisd.org>

Subject: FW: Level 1 Hearing

- 1) Do y'all think that email is from U'i?
- 2) I don't think I can hear an appeal (definitely doesn't feel appropriate), but may need a little verbiage to respond back to Stephen.

Thank you,

Todd

From: Stephen Jordan <srjordan@gmail.com>

Sent: Tuesday, August 4, 2026 12:38 PM

To: Fouche, Todd <FoucheT@friscoisd.org>

Subject: Fwd: Level 1 Hearing

CAUTION: This email originated from outside of the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Dr. Fouche,

This morning I received notice from U'ilani Womble, an Assistant Athletic Director, that she has been assigned to hear my Level I complaint. I was previously advised by Deidra Rucker that this grievance would be heard by a Deputy Superintendent. I am not willing to have this matter heard within the Athletics department again, and I am asking you to hear it yourself.

My reason is straightforward. Every level of this matter to date has been administered by Athletics personnel, and the conduct at issue involves Athletics administrators and Iron Horse Aquatics coaches who report through that department. Section 26A.001(e)(2) of the Education Code requires recusal of any person involved in reviewing a grievance who is the subject of it, and Section 26A.001(e)(3) requires the District to provide a higher level of review when recusal applies. Reassigning the complaint to a different administrator inside the same department is a lateral move, not the higher level of review the statute requires. You are the District official positioned to conduct that review without the structural conflict that has attached to every prior assignment.

I am therefore requesting that you personally hear this complaint, and that no conference be scheduled with Athletics department personnel. I remain willing to participate fully in the District's process; my objection is to who conducts it, not to whether it occurs.

For your awareness, I have raised the financial relationship between Frisco ISD and Iron Horse Aquatics with the offices of Governor Abbott, Senator Paxton, and Representative Patterson, and my appeal remains pending before the Commissioner of Education. I would prefer to resolve the assignment of this hearing with you directly.

Please confirm in writing who will hear this complaint before any conference is scheduled.

Regards,

Stephen Ray Jordan

Good morning,

My name I U'iLani Womble and I am an Assistant Athletic Director in Frisco ISD.

I have been assigned to hear your Level 1 complaint. Please let me know when you are available to meet.

Thank you,



U'iLani Womble

FISD - Home of Champions

41 Team State Championships

47 Team State Runner-Up Finishes

45 Team State Semi-Finalist/3rd

Assistant Athletic Director

469.633.6120

wombleu@friscoisd.org

Frisco ISD Athletic Office

[Frisco ISD Athletics](#)

Kolni, Esther

From: Kolni, Esther
Sent: Wednesday, August 5, 2026 4:40 PM
To: Fouche, Todd
Subject: RE: FFH Retaliations Findings

Oh my.



Esther Kolni, J.D., LL.M., M.Ed.

General Counsel

[469.633.6057](tel:469.633.6057)

kolnie@friscoisd.org

From: Fouche, Todd <FoucheT@friscoisd.org>
Sent: Wednesday, August 5, 2026 4:08 PM
To: Kolni, Esther <kolnie@friscoisd.org>; Anderson, Shelley <andersonsh@friscoisd.org>
Subject: FW: FFH Retaliations Findings

Another one to loop in

From: Stephen Jordan <srjordan@gmail.com>
Sent: Wednesday, August 5, 2026 2:08 PM
To: Womble, U'ilani <WombleU@friscoisd.org>; Fouche, Todd <FoucheT@friscoisd.org>
Subject: Re: FFH Retaliations Findings

CAUTION: This email originated from outside of the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

You and the athletic department can just kiss my ass. I warned you Todd, now starts the public campaign.

Sincerely,
Stephen Jordan

On Wed, Aug 5, 2026, 14:04 Womble, U'ilani <WombleU@friscoisd.org> wrote:

Good afternoon, I have confirmed that I am the next step in your appeal process.

Would you like to meet Monday, 8/10 at 1PM or Tuesday, 8/11 at 1PM?

Thank you,



U'ilani Womble

FISD - Home of Champions

41 Team State Championships

47 Team State Runner-Up Finishes

45 Team State Semi-Finalist/3rd

Assistant Athletic Director

469.633.6120

wombleu@friscoisd.org

Frisco ISD Athletic Office

[Frisco ISD Athletics](#)

From: Stephen Jordan <srjordan@gmail.com>

Sent: Wednesday, August 5, 2026 1:27 PM

To: Womble, U'ilani <WombleU@friscoisd.org>

Subject: Fwd: FFH Retaliations Findings

CAUTION: This email originated from outside of the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

This is for a deputy superintendent or higher.

Sincerely,
Stephen Jordan

----- Forwarded message -----

From: RUCKER, DEIDRA <ruckerd@friscoisd.org>

Date: Mon, Jul 20, 2026, 18:00

Subject: FFH Retaliations Findings

To: Stephen Jordan <srjordan@gmail.com>

Cc: Complaint Resolution <ComplaintResolution@friscoisd.org>

Good evening, Mr. Jordan,

I have attached the response to your FFH (Local) Retaliation.

If you have questions regarding the timeline applicable to an appeal, please contact the Office of the Deputy Superintendent of Schools at complaintresolution@friscoisd.org.

Best Regards,



Deidra Rucker
Associate Director of Athletics
(214) 850-8535 cell
(469) 633-6123 office
ruckerd@friscoisd.org
Frisco ISD Athletic Office
[7210 Stadium Lane](#)
[Frisco, TX 75033](#)

EXHIBIT 3

From: Stephen Jordan <srjordan@gmail.com>
Sent: Tuesday, July 21, 2026 12:09 PM
To: Complaint Resolution
Subject: Re: Notice of Inability to File Appeal — FFH Investigation Finding dated July 20, 2026

CAUTION: This email originated from outside of the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

I appeal the July 20, 2026 investigation finding issued by Deidra Rucker concerning my June 15, 2026 grievance (Reference Z005911-061526). The finding is procedurally and substantively deficient on the grounds set forth below.

Timely Filing

This appeal is filed within the 30-day period identified in the July 20, 2026 letter. I attempted to file the appeal through the District's electronic filing method on July 20, 2026. The portal returned a Server Error 404 - File or directory not found. The error was confirmed using two separate network paths (my own residential IP address and a VPN-routed IP address on a different network) with identical results. I notified the Complaint Resolution office and General Counsel of the error the same day and preserved screenshots. This appeal is being filed by email attachment at the invitation of the Complaint Resolution office.

Grounds for Appeal

1. The investigation applied the wrong policy framework.

The July 20 letter frames the finding under Frisco ISD Board Policy FFH (LOCAL). FFH (LOCAL) defines prohibited retaliation as retaliation "against a student alleged to have experienced discrimination or harassment, including dating violence, or another student who, in good faith, makes a report of harassment or discrimination, files a complaint of harassment or discrimination, serves as a witness, or participates in an investigation." That framework governs student-on-student discrimination and harassment reporting.

The June 15, 2026 grievance did not allege discrimination or harassment against a student. It alleged retaliation against a parent for engaging in the District's formal complaint process — filings under FNG (LOCAL) at Levels I, II, and III; the Lighthouse Services ethics complaint filed February 26, 2026; and related governance concerns. Applying the FFH (LOCAL) framework to a governance-grievance retaliation claim is not the correct policy analysis. The finding of "unsubstantiated" under FFH (LOCAL) does not determine whether the underlying conduct constitutes prohibited retaliation under any other applicable framework.

2. The investigator was not impartial.

Ms. Rucker served as the Level II hearing officer on the underlying grievance under FNG (LOCAL), issuing the Level II response on May 18, 2026, and self-identifying as "hearing officer" in correspondence dated June 19, 2026. The same person cannot serve as a substantive decision-maker on the underlying grievance and as investigator of retaliation arising

from that grievance process. The retaliation investigation examines conduct by staff in Ms. Rucker's Athletics chain of command, including staff whose actions she previously evaluated as hearing officer. That is a structural conflict, not an ad hominem attack.

3. The scope of the investigation was incomplete.

The July 20 letter addresses only the June 9, 2026 initiation of the Parent Code of Conduct investigation. It does not address the July 7, 2026 Summary of Investigation issued under the letterhead of Melissa Howard, Matthew Franks, Daiki Sato, and Justin Bilgri — the document that imposed a suspension through December 31, 2026 and threatened criminal trespass enforcement. The July 7 action is the completed adverse action. An investigation of retaliation that examines the initiation of an investigation but not the imposition of the resulting sanction is incomplete on its face.

4. The temporal anchor for the protected activity is incorrect.

The finding turns on the observation that the June 9 investigation was initiated before I filed the June 15 retaliation grievance. Protected activity for retaliation analysis begins with the earliest protected reporting, not with the retaliation grievance itself. The protected activity in this matter includes, at minimum: the Lighthouse Services ethics complaint filed February 26, 2026 (Report #9022620263313); the Level I grievance filed under FNG (LOCAL); the Level II hearing on May 18, 2026; the Level III appeal filed May 18, 2026; and the Texas Education Agency Petition for Review filed on June 9, 2026 at 6:32 p.m. — approximately two hours after Coach Franks initiated the investigation at 4:35 p.m. the same day. All of these protected activities predate the June 9 investigation initiation. Anchoring the analysis to the June 15 retaliation grievance excludes the entire protected-activity record.

5. Records the finding relies on have not been produced.

The July 20 letter states that the investigation reviewed (a) the report received by Iron Horse Aquatics from staff associated with the Arkansas swimming venue at which the NWAA Memorial Classic Swim Meet took place, and (b) my "signatures and the dates of those signatures on the Iron Horse Parent Code of Conduct and all Iron Horse Aquatics agreements." Neither of these records has been provided to me. I have never been provided the report from Arkansas venue staff and I have no personal knowledge of any electronic acknowledgment record on the current version of the Parent Code of Conduct. The reliability of a finding that turns on documents the subject has not been permitted to see or contest is inadequate under any fair-process standard.

Requested Relief

I respectfully request that the appellate decision-maker:

1. Reverse the July 20, 2026 finding of "unsubstantiated";
2. Direct that the retaliation grievance be reopened and reinvestigated under the correct policy framework, by an investigator with no involvement in the underlying grievance chain, with the scope of investigation expanded to include the July 7, 2026 Summary of Investigation as the adverse action at issue;
3. Direct that all records relied upon in any subsequent investigation be produced to me for review and response; and

4. Any further relief the District deems just and appropriate.

I reserve all rights in this and any other forum in which related matters are pending.

Respectfully submitted,

_____/s/Stephen Jordan

Stephen Ray Jordan

Pro se

On Tue, Jul 21, 2026 at 9:36 AM Complaint Resolution <ComplaintResolution@friscoisd.org> wrote:
I'm sorry the link is giving you issues. If you'd like to send me an attachment with your appeal information including your reasons for disagreement with the FFH findings and requested remedies, I'm happy to upload it to the current DIA complaint addressed by Ms. Rucker as an appeal.

Complaint Resolution

-----Original Message-----

From: Stephen Jordan <srjordan@gmail.com>

Sent: Tuesday, July 21, 2026 9:23 AM

To: Complaint Resolution <ComplaintResolution@friscoisd.org>

Subject: Re: Notice of Inability to File Appeal — FFH Investigation Finding dated July 20, 2026

CAUTION: This email originated from outside of the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

I assure you the link does not work. It allows me to enter my user name and password, then I get the error message shown on the screen I attached earlier.

On Tue, Jul 21, 2026 at 8:33 AM Complaint Resolution <ComplaintResolution@friscoisd.org> wrote:

>

> The link is active and accessible from our side, so I'm unsure what the hangup is. Try getting onto the FISD website and go to the search bubble. Plug in Complaints Resolution and click there. It should take you to the page with the "Submit Complaint" option. Our District website was updated over the summer, and there have been some issues if trying to access using old links.

>

>

>

>
>
> Complaint Resolution
>
>
>
> From: Stephen Jordan <srjordan@gmail.com>
> Sent: Tuesday, July 21, 2026 8:22 AM
> To: Complaint Resolution <ComplaintResolution@friscoisd.org>
> Subject: Re: Notice of Inability to File Appeal — FFH Investigation
> Finding dated July 20, 2026
>
>
>
> CAUTION: This email originated from outside of the organization. Do not click links or open
attachments unless you recognize the sender and know the content is safe.
>
>
>
> Does not work for me.
>
>
>
> Sincerely,
> Stephen Jordan
>
>
>
> On Tue, Jul 21, 2026, 07:57 Complaint Resolution <ComplaintResolution@friscoisd.org> wrote:
>
> Mr. Jordan,
> You can file a complaint appealing the findings of the FFH (LOCAL)
> investigation at this link.
> <https://www.friscoisd.org/o/fisd/page/resolving-complaints>
>
> Regards,
> Complaint Resolution
>
>
> -----Original Message-----
> From: Stephen Jordan <srjordan@gmail.com>
> Sent: Monday, July 20, 2026 7:10 PM
> To: Complaint Resolution <ComplaintResolution@friscoisd.org>
> Cc: Kolni, Esther <kolnie@friscoisd.org>; friscotxisd@mycusthelp.net;
> Fouche, Todd <FoucheT@friscoisd.org>; Leaders <Leaders@friscoisd.org>;
> ARELLANO, MICHELLE D <arellanom@friscoisd.org>
> Subject: Notice of Inability to File Appeal — FFH Investigation
> Finding dated July 20, 2026

>
> CAUTION: This email originated from outside of the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.
>
>
> To the Office of the Deputy Superintendent of Schools:
>
> I am in receipt of the letter dated July 20, 2026 from Deidra Rucker concerning the FFH (LOCAL) investigation of complaint Reference Z005911-061526, notifying me of my right to appeal within 30 calendar days.
>
> I attempted to file an appeal today, July 20, 2026, using the electronic filing method identified in prior District correspondence and consistent with the process the District has previously required.
> The portal returned a Server Error 404 - File or directory not found.
> Screenshots and timestamps of these attempts are preserved.
>
> This is the second occasion on which the District's electronic filing
> infrastructure has been non-functional during a time-sensitive appeal
> window. The same failure was reported to Complaint Resolution on May
> 19 and May 20, 2026 in connection with the Level III filing under FNG (LOCAL).
>
> I am providing this notice to preserve my appeal right and to place the District on notice that the 30-day appeal window is running while the District's electronic filing method is inoperable. I request that the District:
>
> 1. Confirm in writing what filing method the District will accept for this appeal; 2. Confirm in writing that the 30-day appeal window will be tolled from July 20, 2026 until the District confirms a functional filing method; and 3. Confirm the specific policy citation authorizing the Complaint Resolution office to receive appeals of FFH investigations.
>
> I reserve all rights.
>
> Stephen Ray Jordan
> 13054 Cinderella Lane
> Frisco, Texas 75035
> (972) 403-1231
> srjordan@gmail.com

EXHIBIT 4



5515 Ohio Drive
Frisco, Texas 75035
469.633.6000
469.633.6050 (fax)
www.friscoisd.org

July 20, 2026

Stephen Jordan
13054 Cinderella Lane
Frisco, Texas 75035
Email: srjordan@gmail.com

Dear Mr. Jordan:

This letter serves as notification of the conclusion of the investigation conducted pursuant to Frisco Independent School District ("Frisco ISD" or "the District") Board Policy FFH (Local). On or about June 15, 2026, Frisco ISD received a complaint alleging that Frisco ISD employees retaliated against you for engaging in protected reporting and/or the formal complaint process, when Frisco ISD began an investigation into reports of misconduct by you during an offsite US Swimming swim meet for Iron Horse Aquatics, which took place at the NWAA Memorial Classic Swim Meet at an Arkansas swimming venue.

Deidra Rucker provided Mr. Jordan with an opportunity to meet, either in person or by telephone, to share any information or evidence regarding his allegation of retaliation. Mr. Jordan declined the opportunity to participate in a conference and did not provide evidence to be reviewed by Ms. Rucker. As a result, Frisco ISD proceeded with a thorough investigation based on the available information and documentation. The investigation included, but was not limited to, the following:

- Reviewing the Iron Horse Aquatics Parent Code of Conduct.
- Reviewing your signatures and the dates of those signatures on the Iron Horse Parent Code of Conduct and all Iron Horse Aquatics agreements.
- Reviewing communication between the Iron Horse Aquatics staff and Mr. Jordan regarding the potential Parent Code of Conduct violation.
- Reviewing the circumstances and details surrounding the Parent Code of Conduct violation reported to Frisco ISD staff by staff associated with the Arkansas swimming venue at which the US Swimming meet took place.

Based on the information received, I investigated the following allegations:

- Retaliation against a student/parent for Protected Reporting and/or Formal Complaint filing
- Misconduct in Initiating and Conducting a Parent Code of Conduct Investigation into alleged parental misconduct by Mr. Jordan during the NWAA Memorial Classic Swim Meet held in Arkansas

According to Frisco ISD Board Policy FFH (LOCAL), prohibited retaliation is defined as retaliation “against a student alleged to have experienced discrimination or harassment, including dating violence, or another student who, in good faith, makes a report of harassment or discrimination, files a complaint of harassment or discrimination, serves as a witness, or participates in an investigation.”

Based upon my investigation, my findings are as follows:

Your allegations that Frisco ISD employees (Iron Horse Aquatics) retaliated against you, Mr. Jordan, for engaging in protected reporting/formal complaint filing is **unsubstantiated**.

The reviewed evidence does not support a finding that Frisco ISD employees (Iron Horse Aquatics) initiated an investigation into allegations of parental misconduct by Mr. Jordan in retaliation for Mr. Jordan’s engagement in protected reporting and/or formal complaint filing. The Parent Code of Conduct investigation was initiated prior to Mr. Jordan filing a grievance alleging retaliation with Frisco ISD on June 15, 2026. It was initiated in response to a report of alleged parental misconduct received by Iron Horse Aquatics from staff affiliated with the Arkansas swimming venue at which the NWAA Memorial Classic Swim Meet took place. The allegation of parental misconduct was received by Iron Horse staff without prompting from a third-party affiliated with the Arkansas venue at which the NWAA Memorial Classic Swim Meet took place. Initiating and conducting an investigation into allegations of parental misconduct it has received is a standard and required process for Iron Horse Aquatics. Coach Matthew Franks contacted you via email, on June 9, 2026, at approximately 4:35 p.m., to discuss a potential violation of the Iron Horse Aquatics Parent Code of Conduct that allegedly occurred during the NWAA Memorial Classic Swim Meet in Arkansas. All evidence indicates the alleged violation by Mr. Jordan of the Parent Code of Conduct was initiated independently of reporting or complaint filing by Mr. Jordan. Instead, the investigation was initiated as part of the standard Iron Horse process when an

allegation of parental misconduct is received and in accordance with the procedures outlined in the Iron Horse Parent Code of Conduct.

In summary, based on the evidence obtained during this investigation, the allegation that Frisco ISD employees initiated a Parent Code of Conduct investigation in retaliation against you is unsubstantiated. The evidence does not indicate that Frisco ISD employees (Iron Horse Aquatics) engaged in prohibited retaliation in violation of Frisco ISD Board Policy FFH (Local).

If you wish to appeal, you must do so within 30 calendar days, in accordance with applicable Frisco ISD Board Policies which are posted online at <http://pol.tasb.org/Home/Index/309>. Frisco ISD complaint procedures may be found on the Frisco ISD website. Please be advised that all timelines are strictly enforced.

If you have questions regarding the timeline applicable to an appeal, please contact the Office of the Deputy Superintendent of Schools at complaintresolution@friscoisd.org.

Sincerely,

Deidra Rucker
Associate Director of Athletics
Frisco ISD

EXHIBIT 5

Kolni, Esther

From: Fouche, Todd
Sent: Wednesday, August 5, 2026 4:07 PM
To: Kolni, Esther; Anderson, Shelley
Subject: FW: FFH Retaliations Findings
Attachments: FFH Jordan Retaliation.docx.pdf

Just looping you guys in

From: Stephen Jordan <srjordan@gmail.com>
Sent: Wednesday, August 5, 2026 1:32 PM
To: Fouche, Todd <FoucheT@friscoisd.org>
Subject: Fwd: FFH Retaliations Findings

CAUTION: This email originated from outside of the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

This for a level 2 hearing. Your idiot staff misclassified this. Final warning i am sending to tv stations and radio stations if you do not hear this case.

Sincerely,
Stephen Jordan

----- Forwarded message -----

From: **RUCKER, DEIDRA** <ruckerd@friscoisd.org>
Date: Mon, Jul 20, 2026, 18:00
Subject: FFH Retaliations Findings
To: Stephen Jordan <srjordan@gmail.com>
Cc: Complaint Resolution <ComplaintResolution@friscoisd.org>

Good evening, Mr. Jordan,

I have attached the response to your FFH (Local) Retaliation.

If you have questions regarding the timeline applicable to an appeal, please contact the Office of the Deputy Superintendent of Schools at complaintresolution@friscoisd.org.

Best Regards,



Deidra Rucker
Associate Director of Athletics
(214) 850-8535 cell
(469) 633-6123 office
ruckerd@friscoisd.org
Frisco ISD Athletic Office
[7210 Stadium Lane](#)
[Frisco, TX 75033](#)

EXHIBIT 6

DOCKET NO. _____

PARENT A/N/F STUDENT,
Petitioner

v.

FRISCO INDEPENDENT SCHOOL DISTRICT,
Respondent

BEFORE THE
COMMISSIONER OF EDUCATION
THE STATE OF TEXAS

PETITION FOR REVIEW

TO THE HONORABLE COMMISSIONER OF EDUCATION:

Petitioner files this Petition for Review under Section 7.057 of the Education Code and 19 Texas Administrative Code Section 157.1073, and in support states as follows.

I. PARTIES

1. Petitioner is the parent of a student enrolled in the Frisco Independent School District. Petitioner appears pro se. Petitioner's address is 13054 Cinderella Lane, Frisco, Texas 75035; telephone (972) 403-1231; electronic mail srjordan@gmail.com.

2. Respondent is the Frisco Independent School District, a political subdivision of the State of Texas, with administrative offices at 5515 Ohio Drive, Frisco, Texas 75035. Respondent's Superintendent is Dr. Todd Fouche. Respondents have appeared in related proceedings through counsel Rebecca L. Bradley, Abernathy, Roeder, Boyd & Hullett, P.C.

II. JURISDICTION

3. Jurisdiction is invoked under Section 7.057(a)(2)(A) of the Education Code, which authorizes a person aggrieved by actions or decisions of a board of trustees that violate the school

laws of this state to appeal in writing to the Commissioner. Section 7.057(f)(2) defines the school laws of this state as Titles 1 and 2 of the Education Code and rules adopted under those titles. Each provision alleged below to have been violated arises under Chapter 1 or Chapter 26 of the Education Code.

4. This petition concerns Respondent's handling of a retaliation grievance, District Reference Z005911-061526, and is separate from the matter pending in Docket No. 120-R10-06-2026, which concerns Respondent's handling of Petitioner's grievance regarding advancement criteria in the Iron Horse Aquatics program. Petitioner discloses the pendency of that docket in the interest of candor and does not seek duplicative relief.

5. The board action at issue is Respondent's Board's failure to provide the grievance procedure it adopted, and the District's administrative determination, ratified by the Board's inaction, that this grievance will not proceed to Board review. Petitioner addresses the board action requirement at Part V below.

III. THE POLICIES AT ISSUE

6. On November 17, 2025, Respondent's Board of Trustees adopted policy FNG (LOCAL), Student and Parent Complaints/Grievances, issued February 4, 2026, LDU 2026.01. FNG (LOCAL) is the local grievance procedure Respondent's Board is required to adopt under Section 26.011(a) of the Education Code.

7. FNG (LOCAL) provides that the complaint form shall be filed with the District-level administrator designated to accept formal complaint filings, and that the District-level administrator shall assign the complaint to be heard by the lowest-level administrator who has the authority to remedy the alleged problem.

8. FNG (LOCAL) further provides that if a complaint is not filed with the appropriate administrator, the receiving administrator must note the date and time the complaint form was received and immediately forward the complaint form to the appropriate administrator. The policy does not authorize a District administrator to restart the grievance process, to reassign a pending appeal to a lower level, or to treat a filed appeal as an initial complaint.

9. FNG (LOCAL) provides a three-level process concluding in Board review. At Level Three the policy states that, unless the Board delegates a committee in accordance with law, the Board shall consider the appeal of the Level Two decision, and that the Board or Board committee shall hold a meeting to discuss the complaint no later than sixty calendar days after the date on which the Level Two decision was made.

IV. FACTUAL BACKGROUND

10. On February 26, 2026, Petitioner filed an ethics complaint through Respondent's Lighthouse Services reporting channel, Report Number 9022620263313, concerning the administration of the Iron Horse Aquatics program. That filing is the earliest protected activity relevant to this petition.

11. On June 15, 2026, Petitioner filed a Level One retaliation grievance with Respondent, assigned District Reference Z005911-061526.

12. Deidra Rucker, Associate Director of Athletics, was assigned to investigate that grievance. Ms. Rucker had previously served as the Level Two hearing officer on Petitioner's underlying grievance concerning advancement criteria, and issued the Level Two decision in that matter on May 18, 2026.

13. On July 7, 2026, Respondent suspended Petitioner's son from all Iron Horse Aquatics events through December 31, 2026. That suspension remains in force.

14. On July 20, 2026, Ms. Rucker issued a finding of "unsubstantiated" on the retaliation grievance. The finding was issued under policy FFH (LOCAL), which governs complaints of discrimination, harassment, and retaliation related to discrimination and harassment. The finding did not examine the July 7, 2026 suspension. The letter advised Petitioner of a right to appeal within thirty calendar days.

15. On July 20, 2026, Petitioner attempted to file the appeal through Respondent's electronic filing portal. The portal returned "Server Error 404 — File or directory not found." The error was confirmed across two separate network paths, Petitioner's residential connection and a virtual private network connection on a different network. Screenshots with timestamps are preserved.

16. On July 20, 2026, Petitioner sent written notice of the filing failure to Respondent's Complaint Resolution office, with copies to the General Counsel, the Superintendent, and the District leadership distribution list. That notice requested that Respondent confirm in writing what filing method would be accepted, confirm that the thirty day appeal window would be tolled until a functional method was identified, and identify the policy authorizing the Complaint Resolution office to receive appeals of FFH investigations.

17. Respondent's Complaint Resolution office replied acknowledging the portal failure and inviting Petitioner to file by electronic mail attachment.

18. On July 21, 2026, Petitioner filed the appeal by electronic mail attachment as invited, addressed to the Complaint Resolution office with a copy to the General Counsel. The appeal stated five grounds: that the finding applied FFH (LOCAL), which governs student discrimination complaints, rather than the policy governing parent governance grievances; that the investigator had a disqualifying conflict; that the investigation did not reach the July 7, 2026, suspension; that the finding used an incorrect temporal anchor for the protected activity; and that records the investigator represented she reviewed were never produced to Petitioner.

19. Respondent never decided that appeal. Instead, on or about August 6, 2026, Respondent notified Petitioner that an Assistant Athletic Director had been assigned to hear the matter as a Level One complaint.

20. Petitioner objected in writing to that assignment and requested that the Superintendent personally hear the matter, on the ground that the grievance concerns the conduct of the Athletics department and cannot properly be assigned within it.

21. Respondent did not withdraw the assignment. Respondent has continued to direct Petitioner to administrators within the Athletics department. Respondent has advised Petitioner that the reassignment was necessary because the Complaint Resolution office did not process the original filing correctly.

22. The effect of the reassignment is that a grievance filed June 15, 2026, investigated and decided July 20, 2026, and appealed July 21, 2026, has been returned to Level One more than seven weeks after the appeal was filed, with the process to begin again.

23. No Board of Trustees has considered this grievance at any time. No Board meeting has been held or scheduled concerning it. No written Board decision has been made.

V. THE BOARD ACTION REQUIREMENT

24. Section 7.057(a)(2)(A) requires an action or decision of the board of trustees. Petitioner submits that requirement is satisfied for the following reasons.

25. First, the grievance procedure at issue is the Board's own. The Board adopted FNG (LOCAL) on November 17, 2025. Section 1.007(b) of the Education Code places the obligation to implement and comply with each required policy on the school, its governing body, and its employees. The Board's obligation is not delegable in the sense that it disappears when administrators act inconsistent with the policy the Board adopted. Non-compliance with the Board's adopted grievance policy is a failure of the governing body.

26. Second, the Board has been on notice and has not acted. Petitioner's July 20, 2026 notice was directed to the Superintendent and to the District leadership distribution list. Respondent's Board has held meetings since that date and has taken no action to correct the handling of this grievance.

27. Third, Respondent has taken the position in writing, through its General Counsel on May 21, 2026 in the related matter, that complaints of this character are not heard by the Board of Trustees and that its internal process stops at Level Two. That is a District-wide interpretation of the Board's policy, not a determination limited to a single grievance, and it forecloses Board review of this grievance as well.

28. Fourth, to the extent the Commissioner concludes that exhaustion is incomplete, Petitioner submits that further pursuit within the District would be futile. The appeal filed July 21, 2026, was not decided; it was returned to Level One. Petitioners have no assurance that a second appeal would fare differently, and the District has provided none.

VI. CLAIMS

Count One — Violation of Section 1.007(b), Education Code

29. Section 1.007(b) requires the school, its governing body, and its employees to implement and comply with each policy the school is required to adopt. FNG (LOCAL) is the policy Respondent is required to adopt under Section 26.011(a).

30. FNG (LOCAL) requires that a misfiled complaint be noted as to date and time of receipt and immediately forwarded to the appropriate administrator. It does not authorize restarting the process. Respondent has instead treated an administrative processing error by its own Complaint Resolution office as grounds to return a decided and appealed grievance to Level One, more than seven weeks after the appeal was filed. That is not compliance with the adopted policy.

31. FNG (LOCAL) requires assignment to the lowest-level administrator who has the authority to remedy the alleged problem. The grievance concerns the conduct of Athletics department personnel and the District's handling of a retaliation complaint. An Assistant Athletic Director does not have authority to remedy that problem.

Count Two — Violation of Section 26.011(c)(6) and (c)(7), Education Code

32. Section 26.011(c)(6) requires the Board to ensure that its grievance procedure requires a person responsible for reviewing a grievance to recuse himself or herself if the person is the subject of the grievance, and Section 26.011(c)(7) requires review by the next person to whom the grievance would be appealed.

33. Deidra Rucker served as the Level Two hearing officer on Petitioner's underlying grievance and thereafter investigated Petitioner's grievance alleging retaliation arising from the handling of that same matter. She did not recuse. No substitute reviewer was designated. Respondent has since assigned the matter to another administrator within the same department whose conduct is at issue.

Count Three — Violation of Section 26.011(c)(2) and (c)(3), Education Code

34. Section 26.011(c)(2) and (c)(3) require the Board to ensure that its grievance procedure provides for written documentation of the decision at each level within the times prescribed, including an explanation of the findings, notification of the right to appeal, and the timeline for appealing.

35. Petitioner's appeal filed July 21, 2026, has never been decided. Petitioner received no written documentation of any decision on that appeal, no explanation of findings, and no statement of appeal rights from any appellate decision-maker. The appeal was instead reassigned to Level One without a decision.

Count Four — Violation of Section 26.011(a)(1), Education Code

36. Section 26.011(a)(1) requires the Board to adopt a grievance procedure under which the board shall address each grievance it receives concerning a violation of a right guaranteed by Chapter 26, if timely filed. Petitioner's grievance was timely filed and timely appealed at every stage. The Board has not addressed it.

VII. RELIEF REQUESTED

37. Petitioner requests that the Commissioner:

- a. Find that Respondent violated Section 1.007(b) of the Education Code by failing to comply with FNG (LOCAL) as adopted by its Board;
- b. Find that Respondent violated Section 26.011(a) and (c) of the Education Code;
- c. Set aside the reassignment of the appealed grievance to Level One;
- d. Order that the appeal filed July 21, 2026, be decided at the level to which it was taken, by a decision-maker outside the Athletics department, and that the grievance thereafter proceed through Board review in conformity with FNG (LOCAL);
- e. Order Respondent to bring its grievance practice into conformity with the policy its Board adopted; and
- f. Grant such other relief to which Petitioner may be entitled.

38. The relief sought is procedural and structural. Petitioners do not seek reinstatement of any student to any program or any individual placement.

Respectfully submitted,

/s/Stephen Ray Jordan

Stephen Ray Jordan

Petitioner, pro se

13054 Cinderella Lane

Frisco, Texas 75035

srjordan@gmail.com

(972) 403-1231

CERTIFICATE OF SERVICE

I certify that on August 15, 2026, a true and correct copy of the foregoing was served by electronic mail on Dr. Todd Fouche, Superintendent, Frisco Independent School District, 5515 Ohio Drive, Frisco, Texas 75035, and by electronic mail on Ms. Kolni General Counsel Frisco ISD.

/s/Stephen Ray Jordan

Stephen Ray Jordan

EXHIBIT 7

STUDENT WELFARE
FREEDOM FROM DISCRIMINATION, HARASSMENT, AND RETALIATION

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Note: The following legal provisions address dating violence and sexual harassment. For legal provisions addressing discrimination on the basis of disability, sex, and other protected characteristics, see FB.

Dating Violence

Policy
Requirements

A district shall adopt and implement a dating violence policy to be included in the district improvement plan.

A dating violence policy must include:

1. A definition of dating violence that includes the intentional use of physical, sexual, verbal, or emotional abuse by a person to harm, threaten, intimidate, or control another person in a dating relationship, as defined by Family Code 71.0021;
2. A clear statement that dating violence is not tolerated at school; and
3. Reporting procedures and guidelines for students who are victims of dating violence, including a procedure for immediately notifying the parent or guardian of a student about a report received by the district identifying the student as an alleged victim or perpetrator of dating violence.

A dating violence policy must also address safety planning, enforcement of protective orders, school-based alternatives to protective orders, training for teachers and administrators at each district campus that instructs students in grade 6 or higher, counseling for affected students, and awareness education for students and parents.

Education Code 37.083, .0831 [See BQ]

Student Resources

To the extent possible, a district shall make available to students age-appropriate educational materials that include information on the dangers of dating violence and resources to students seeking help. *Education Code 37.0831(c)*

Sexual Harassment

A district may develop and implement a sexual harassment policy to be included in the district improvement plan. *Education Code 37.083 [See BQ]*

Sexual abuse of a student by an employee, when there is a connection between the physical sexual activity and the employee's duties and obligations as a district employee, violates a student's constitutional right to bodily integrity. Sexual abuse may include fondling, sexual assault, or sexual intercourse. *U.S. Const. Amend. 14; Doe v. Taylor Indep. Sch. Dist., 15 F.3d 443 (5th Cir. 1994)*

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No person in the United States shall, on the basis of sex, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any education program or activity receiving federal financial assistance. *20 U.S.C. 1681 (Title IX)*

A district's treatment of a complainant or a respondent in response to a formal complaint of sexual harassment may constitute discrimination on the basis of sex under Title IX. *34 C.F.R. 106.45; 20 U.S.C. 1681* [See also FB regarding Title IX]

Civil Liability

A school district that is grossly negligent or reckless, or engages in intentional misconduct, in hiring, supervising, or employing a professional school employee is liable for an act or omission that is committed by the employee against a student enrolled in the school and that is sexual misconduct.

For purposes of this provision, "sexual misconduct" means sexual abuse or conduct described by Penal Code:

1. 20A.02 (trafficking of persons);
2. 21.02 (continuous sexual abuse of young child or disabled individual);
3. 21.07 (public lewdness);
4. 21.08 (indecent exposure);
5. 21.11 (indecent with a child);
6. 21.12 (improper relationship between educator and student);
7. 21.15 (invasive visual recording);
8. 21.16 (unlawful disclosure or promotion of intimate visual material);
9. 21.165 (possession or promotion of lewd visual material depicting child);
10. 21.17 (voyeurism);
11. 21.18 (sexual coercion);
12. 21.19 (bestiality);
13. 22.011 (sexual assault);
14. 22.012 (indecent assault);
15. 22.021 (aggravated sexual assault); and
16. 43.25 (sexual performance by a child).

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For purposes of this provision, “professional school employee” includes:

1. A superintendent, principal, teacher, including a substitute teacher, supervisor, social worker, school counselor, nurse, and teacher's aide employed by a district;
2. A teacher employed by a company that contracts with a district to provide the teacher's services to the school;
3. A student in an education preparation program participating in a field experience or internship;
4. A school bus driver certified in accordance with standards and qualifications adopted by the Department of Public Safety of the State of Texas;
5. A member of the board; and
6. Any other person employed by the district whose employment requires certification and the exercise of discretion.

A district's governmental immunity to suit and from liability is waived to the extent of liability created above.

The professional school employee who committed the act of failure to report must be named as a defendant. The employee may not assert official immunity in such an action.

Civil Practice and Remedies Code 118.001, .002, .006

Designation of
Title IX Coordinator

A district must designate and authorize at least one employee to coordinate its efforts to comply with its responsibilities under Title IX, which employee must be referred to as the “Title IX Coordinator.”

Parties Entitled to
Notice

The district must notify applicants for admission and employment, students, parents or legal guardians, employees, and all professional organizations holding professional agreements with the district (“Parties Entitled to Notice”) of the name or title, office address, electronic mail address, and telephone number of the employee or employees designated as the Title IX Coordinator.

34 C.F.R. 106.8(a)

Reporting

Any person may report sex discrimination, including sexual harassment (whether or not the person reporting is the person alleged to be the victim of conduct that could constitute sex discrimination or sexual harassment), in person, by mail, by telephone, or by electronic mail, using the contact information listed for the Title IX Coordinator, or by any other means that results in the Title IX Coordinator receiving the person's verbal or written report. Such a report

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may be made at any time (including during nonbusiness hours) by using the telephone number or electronic mail address, or by mail to the office address, listed for the Title IX Coordinator. *34 C.F.R. 106.8(a)*

Notification of Policy A district must notify the Parties Entitled to Notice, above, that the district does not discriminate on the basis of sex in the education program or activity that it operates, and that it is required by Title IX not to discriminate in such a manner. The notification must state that the requirement not to discriminate in the education program or activity extends to employment, and that inquiries about the application of Title IX to such district may be referred to the district's Title IX Coordinator, to the assistant secretary for civil rights of the Department of Education, or both. *34 C.F.R. 106.2(d), .8(b)(1)*

Publication Requirements A district must prominently display the contact information required to be listed for the Title IX Coordinator and the nondiscrimination policy described at Notification of Policy, above, on its website, if any, and in each handbook that it makes available to the Parties Entitled to Notice, above.

A district must not use or distribute a publication stating that the district treats applicants, students, or employees differently on the basis of sex except as such treatment is permitted by Title IX.

34 C.F.R. 106.8(b)(2)

Note: To distinguish the process described below from the district's general grievance policies [see DGBA, FNG, and GF], this policy refers to the grievance process required by Title IX regulations for responding to formal complaints of Title IX sexual harassment in an education program or activity and against a person in the United States as the district's "Title IX formal complaint process."

Adopting and Publishing Complaint Procedures A district must adopt and publish procedures that provide for the prompt and equitable resolution of student and employee complaints alleging any action that would be prohibited by Title IX and a Title IX formal complaint process that complies with 34 C.F.R. 106.45 for formal complaints as defined below.

A district must provide notice to the Parties Entitled to Notice, above, of the district's procedures and Title IX formal complaint process, including how to report or file a complaint of sex discrimination, how to report or file a formal complaint of sexual harassment, and how the district will respond.

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The requirements of this provision apply only to sex discrimination occurring against a person in the United States.

34 C.F.R. 106.8(c)-(d)

Response to Sexual
Harassment

Definitions

“Actual knowledge” means notice of sexual harassment or allegations of sexual harassment to a district’s Title IX Coordinator or any official of the district who has authority to institute corrective measures on behalf of the district, or to any employee of an elementary and secondary school. Imputation of knowledge based solely on vicarious liability or constructive notice is insufficient to constitute actual knowledge. This standard is not met when the only official of the district with actual knowledge is the respondent. The mere ability or obligation to report sexual harassment or to inform a student about how to report sexual harassment, or having been trained to do so, does not qualify an individual as one who has authority to institute corrective measures on behalf of the district. “Notice” as used in this paragraph includes, but is not limited to, a report of sexual harassment to the Title IX Coordinator.

“Complainant” means an individual who is alleged to be the victim of conduct that could constitute sexual harassment.

“Consent” is not defined by the Title IX regulations, nor do the regulations require districts to adopt a particular definition of consent with respect to sexual assault.

“Formal complaint” means a document filed by a complainant or signed by the Title IX Coordinator alleging sexual harassment against a respondent and requesting that the district investigate the allegation of sexual harassment. At the time of filing a formal complaint, a complainant must be participating in or attempting to participate in the education program or activity of the district with which the formal complaint is filed. A formal complaint may be filed with the Title IX Coordinator in person, by mail, or by electronic mail, by using the contact information required to be listed for the Title IX Coordinator, and by any additional method designated by the district. As used in this paragraph, the phrase “document filed by a complainant” means a document or electronic submission (such as by electronic mail or through an online portal provided for this purpose by the district) that contains the complainant’s physical or digital signature, or otherwise indicates that the complainant is the person filing the formal complaint. Where the Title IX Coordinator signs a formal complaint, the Title IX Coordinator is not a complainant or otherwise a party to a Title IX formal complaint, and must comply with the requirements of the Title IX formal complaint process, including the informal resolution process.

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“Respondent” means an individual who has been reported to be the perpetrator of conduct that could constitute sexual harassment.

“Sexual harassment” means conduct on the basis of sex that satisfies one or more of the following:

1. An employee of the district conditioning the provision of an aid, benefit, or service of the district on an individual’s participation in unwelcome sexual conduct;
2. Unwelcome conduct determined by a reasonable person to be so severe, pervasive, and objectively offensive that it effectively denies a person equal access to the district’s education program or activity; or
3. “Sexual assault” as defined in 20 U.S.C. 1092(f)(6)(A)(v), “dating violence” as defined in 34 U.S.C. 12291(a)(10), “domestic violence” as defined in 34 U.S.C. 12291(a)(8), or “stalking” as defined in 34 U.S.C. 12291(a)(30).

“Supportive measures” means nondisciplinary, nonpunitive individualized services offered as appropriate, as reasonably available, and without fee or charge to the complainant or the respondent before or after the filing of a formal complaint or where no formal complaint has been filed. Such measures are designed to restore or preserve equal access to the district’s education program or activity without unreasonably burdening the other party, including measures designed to protect the safety of all parties or the district’s educational environment, or deter sexual harassment. Supportive measures may include counseling, extensions of deadlines or other course-related adjustments, modifications of work or class schedules, campus escort services, mutual restrictions on contact between the parties, changes in work or district-provided housing locations, leaves of absence, increased security and monitoring of certain areas of the campus, and other similar measures. The district must maintain as confidential any supportive measures provided to the complainant or respondent, to the extent that maintaining such confidentiality would not impair the ability of the district to provide the supportive measures. The Title IX Coordinator is responsible for coordinating the effective implementation of supportive measures.

34 C.F.R. 106.2, .30(a)

*Deliberate
Indifference*

A district with actual knowledge of sexual harassment in an education program or activity of the district against a person in the United States, must respond promptly in a manner that is not deliberately indifferent. A district is deliberately indifferent only if its response to

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sexual harassment is clearly unreasonable in light of the known circumstances.

*Education
Program or
Activity*

For the purposes of 34 C.F.R. 106.30 [see Definitions, above] and 106.45 [see Process for Title IX Formal Complaint, below], “education program or activity” includes locations, events, or circumstances over which the district exercised substantial control over both the respondent and the context in which the sexual harassment occurs.

34 C.F.R. 106.44(a)

*Title IX Coordinator
Response*

The Title IX Coordinator must promptly contact the complainant to discuss the availability of supportive measures, consider the complainant’s wishes with respect to supportive measures, inform the complainant of the availability of supportive measures with or without the filing of a formal complaint, and explain to the complainant the process for filing a formal complaint. The Title IX Coordinator must respond in this manner with or without a formal complaint. *34 C.F.R. 106.44(b)(1)*

*Supportive
Measures
Required*

A district’s response must treat complainants and respondents equitably by offering supportive measures and by following a process that complies with 34 C.F.R. 106.45 [see Process for Title IX Formal Complaint, below] before the imposition of any disciplinary sanctions or other actions that are not supportive measures against a respondent. [For Emergency Removal procedures, see below.]

*Constitutional
Restrictions*

The Department of Education may not deem a district to have satisfied the district’s duty to not be deliberately indifferent under Title IX based on the district’s restriction of rights protected under the U.S. Constitution, including the First Amendment, Fifth Amendment, and Fourteenth Amendment.

34 C.F.R. 106.44(a)

*Response to a
Formal Complaint*

In response to a formal complaint, a district must follow a process that complies with 34 C.F.R. 106.45 [see Process for Title IX Formal Complaint, below]. *34 C.F.R. 106.44(b)(1)*

*Emergency
Removal*

The Title IX regulations do not preclude a district from removing a respondent from the district’s education program or activity on an emergency basis, provided that the district:

1. Undertakes an individualized safety and risk analysis;
2. Determines that an immediate threat to the physical health or safety of any student or other individual arising from the allegations of sexual harassment justifies removal; and

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3. Provides the respondent with notice and an opportunity to challenge the decision immediately following the removal.

This provision may not be construed to modify any rights under the Individuals with Disabilities Education Act, Section 504 of the Rehabilitation Act of 1973, or the Americans with Disabilities Act.

34 C.F.R. 106.44(c)

*Administrative
Leave*

The Title IX regulations do not preclude a district from placing a nonstudent employee respondent on administrative leave during the pendency of a Title IX formal complaint. This provision may not be construed to modify any rights under Section 504 of the Rehabilitation Act of 1973 or the Americans with Disabilities Act. *34 C.F.R. 106.44(d)*

Process for Title IX
Formal Complaint

For the purpose of addressing formal complaints of sexual harassment, a district's process must comply with the following requirements. Any provisions, rules, or practices other than those required by this provision that a district adopts as part of its process for handling formal complaints of sexual harassment must apply equally to both parties. *34 C.F.R. 106.45(b)*

A district's Title IX formal complaint process must:

1. Treat complainants and respondents equitably by providing remedies to a complainant where a determination of responsibility for sexual harassment has been made against the respondent, and by following a process that complies with the Title IX regulations before the imposition of any disciplinary sanctions or other actions that are not supportive measures against a respondent. Remedies must be designed to restore or preserve equal access to the district's education program or activity. Such remedies may include the same individualized services described as supportive measures; however, remedies need not be nondisciplinary or nonpunitive and need not avoid burdening the respondent;
2. Require an objective evaluation of all relevant evidence—including both inculpatory and exculpatory evidence—and provide that credibility determinations may not be based on a person's status as a complainant, respondent, or witness;
3. Require that any individual designated by a district as a Title IX Coordinator, investigator, decision-maker, or any person designated by a district to facilitate an informal resolution process, not have a conflict of interest or bias for or against complainants or respondents generally or an individual complainant or respondent. A district must ensure that Title IX Coordinators, investigators, decision-makers, and any person

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who facilitates an informal resolution process, receive training on the definition of sexual harassment, the scope of the district's education program or activity, how to conduct an investigation and Title IX formal complaint process including hearings, appeals, and informal resolution processes, as applicable, and how to serve impartially, including by avoiding prejudgment of the facts at issue, conflicts of interest, and bias. A district must ensure that decision-makers receive training on any technology to be used at a live hearing, if any, and on issues of relevance of questions and evidence, including when questions and evidence about the complainant's sexual predisposition or prior sexual behavior are not relevant. [See Hearings, below] A district also must ensure that investigators receive training on issues of relevance to create an investigative report that fairly summarizes relevant evidence. [See Investigation of a Formal Complaint, below] Any materials used to train Title IX Coordinators, investigators, decision-makers, and any person who facilitates an informal resolution process, must not rely on sex stereotypes and must promote impartial investigations and adjudications of formal complaints of sexual harassment;

4. Include a presumption that the respondent is not responsible for the alleged conduct until a determination regarding responsibility is made at the conclusion of the Title IX formal complaint process;
5. Include reasonably prompt time frames for conclusion of the Title IX formal complaint process, including reasonably prompt time frames for filing and resolving appeals and informal resolution processes if the district offers informal resolution processes, and a process that allows for the temporary delay of the Title IX formal complaint process or the limited extension of time frames for good cause with written notice to the complainant and the respondent of the delay or extension and the reasons for the action. Good cause may include considerations such as the absence of a party, a party's advisor, or a witness; concurrent law enforcement activity; or the need for language assistance or accommodation of disabilities;
6. Describe the range of possible disciplinary sanctions and remedies or list the possible disciplinary sanctions and remedies that the district may implement following any determination of responsibility;
7. State whether the standard of evidence to be used to determine responsibility is the preponderance of the evidence standard or the clear and convincing evidence standard, apply the

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same standard of evidence for formal complaints against students as for formal complaints against employees, including faculty, and apply the same standard of evidence to all formal complaints of sexual harassment;

8. Include the procedures and permissible bases for the complainant and respondent to appeal;
9. Describe the range of supportive measures available to complainants and respondents; and
10. Not require, allow, rely upon, or otherwise use questions or evidence that constitute, or seek disclosure of, information protected under a legally recognized privilege, unless the person holding such privilege has waived the privilege.

34 C.F.R. 106.45(b)(1)

*Notice of
Allegations*

Upon receipt of a formal complaint, a district must provide the following written notice to the parties who are known:

1. Notice of the district's Title IX formal complaint process, including any informal resolution process.
2. Notice of the allegations of sexual harassment potentially constituting sexual harassment, including sufficient details known at the time and with sufficient time to prepare a response before any initial interview. Sufficient details include:
 - a. The identities of the parties involved in the incident, if known;
 - b. The conduct allegedly constituting sexual harassment; and
 - c. The date and location of the alleged incident, if known.

The written notice must include a statement that the respondent is presumed not responsible for the alleged conduct and that a determination regarding responsibility is made at the conclusion of the Title IX formal complaint process. The written notice must inform the parties that they may have an advisor of their choice, who may be, but is not required to be, an attorney and may inspect and review evidence [see Investigation of a Formal Complaint, below]. The written notice must inform the parties of any provision in the district's code of conduct that prohibits knowingly making false statements or knowingly submitting false information during the Title IX formal complaint process.

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If, in the course of an investigation, the district decides to investigate allegations about the complainant or respondent that are not included in the Notice of Allegations, above, the district must provide notice of the additional allegations to the parties whose identities are known.

34 C.F.R. 106.45(b)(2)

*Dismissal of a
Formal Complaint*

The district must investigate the allegations in a formal complaint. If the conduct alleged in the formal complaint would not constitute sexual harassment even if proved, did not occur in the district's education program or activity, or did not occur against a person in the United States, then the district must dismiss the formal complaint with regard to that conduct for purposes of sexual harassment under Title IX; such a dismissal does not preclude action under another provision of the district's code of conduct.

The district may dismiss the formal complaint or any allegations therein, if at any time during the investigation or hearing: a complainant notifies the Title IX Coordinator in writing that the complainant would like to withdraw the formal complaint or any allegations therein; the respondent is no longer enrolled or employed by the district; or specific circumstances prevent the district from gathering evidence sufficient to reach a determination as to the formal complaint or allegations therein.

Upon a dismissal required or permitted pursuant to 34 C.F.R. 106.45(b)(3), the district must promptly send written notice of the dismissal and reason(s) therefor simultaneously to the parties.

*Consolidation of
Formal
Complaints*

A district may consolidate formal complaints as to allegations of sexual harassment against more than one respondent, or by more than one complainant against one or more respondents, or by one party against the other party, where the allegations of sexual harassment arise out of the same facts or circumstances. Where a Title IX formal complaint process involves more than one complainant or more than one respondent, references in this provision to the singular "party," "complainant," or "respondent" include the plural, as applicable.

34 C.F.R. 106.45(b)(3)-(4)

*Investigation of a
Formal Complaint*

When investigating a formal complaint and throughout the Title IX formal complaint process, a district must:

1. Ensure that the burden of proof and the burden of gathering evidence sufficient to reach a determination regarding responsibility rest on the district and not on the parties provided that the district cannot access, consider, disclose, or otherwise use a party's records that are made or maintained by a physi-

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cian, psychiatrist, psychologist, or other recognized professional or paraprofessional acting in the professional's or paraprofessional's capacity, or assisting in that capacity, and which are made and maintained in connection with the provision of treatment to the party, unless the district obtains that party's voluntary, written consent to do so for a Title IX formal complaint (if a party is not an "eligible student," as defined in 34 C.F.R. 99.3 then the district must obtain the voluntary, written consent of a "parent," as defined in 34 C.F.R. 99.3) [see FL(LEGAL) at Education Records];

2. Provide an equal opportunity for the parties to present witnesses, including fact and expert witnesses, and other inculpatory and exculpatory evidence;
3. Not restrict the ability of either party to discuss the allegations under investigation or to gather and present relevant evidence;
4. Provide the parties with the same opportunities to have others present during any Title IX formal complaint proceeding, including the opportunity to be accompanied to any related meeting or proceeding by the advisor of their choice, who may be, but is not required to be, an attorney, and not limit the choice or presence of advisor for either the complainant or respondent in any meeting or Title IX formal complaint proceeding; however, the district may establish restrictions regarding the extent to which the advisor may participate in the proceedings, as long as the restrictions apply equally to both parties;
5. Provide, to a party whose participation is invited or expected, written notice of the date, time, location, participants, and purpose of all hearings, investigative interviews, or other meetings, with sufficient time for the party to prepare to participate;
6. Provide both parties an equal opportunity to inspect and review any evidence obtained as part of the investigation that is directly related to the allegations raised in a formal complaint, including the evidence upon which the district does not intend to rely in reaching a determination regarding responsibility and inculpatory or exculpatory evidence whether obtained from a party or other source, so that each party can meaningfully respond to the evidence prior to conclusion of the investigation. Prior to completion of the investigative report, the district must send to each party and the party's advisor, if any, the evidence subject to inspection and review in an electronic format or a hard copy, and the parties must have at least 10 days to submit a written response, which the investigator will

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consider prior to completion of the investigative report. The district must make all such evidence subject to the parties' inspection and review available at any hearing to give each party equal opportunity to refer to such evidence during the hearing, including for purposes of cross-examination; and

7. Create an investigative report that fairly summarizes relevant evidence and, at least 10 days prior to a hearing (if a hearing is required or otherwise provided) or other time of determination regarding responsibility, send to each party and the party's advisor, if any, the investigative report in an electronic format or a hard copy, for their review and written response.

34 C.F.R. 106.45(b)(5)

Hearings

The district's Title IX formal complaint process may, but need not, provide for a hearing. With or without a hearing, after the district has sent the investigative report to the parties pursuant to 34 C.F.R. 106.45(b)(5)(vii) [see Investigation of a Formal Complaint, above] and before reaching a determination regarding responsibility, the decision-maker(s) must afford each party the opportunity to submit written, relevant questions that a party wants asked of any party or witness, provide each party with the answers, and allow for additional, limited follow-up questions from each party. With or without a hearing, questions and evidence about the complainant's sexual predisposition or prior sexual behavior are not relevant, unless such questions and evidence about the complainant's prior sexual behavior are offered to prove that someone other than the respondent committed the conduct alleged by the complainant, or if the questions and evidence concern specific incidents of the complainant's prior sexual behavior with respect to the respondent and are offered to prove consent. The decision-maker(s) must explain to the party proposing the questions any decision to exclude a question as not relevant. *34 C.F.R. 106.45(b)(6)(ii)*

*Determination
Regarding
Responsibility*

The decision-maker(s), who cannot be the same person(s) as the Title IX Coordinator or the investigator(s), must issue a written determination regarding responsibility. To reach this determination, the district must apply the standard of evidence described at Process for Title IX Formal Complaint, above.

The written determination must include:

1. Identification of the allegations potentially constituting sexual harassment;
2. A description of the procedural steps taken from the receipt of the formal complaint through the determination, including any notifications to the parties, interviews with parties and wit-

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nesses, site visits, methods used to gather other evidence, and hearings held;

3. Findings of fact supporting the determination;
4. Conclusions regarding the application of the district's code of conduct to the facts;
5. A statement of, and rationale for, the result as to each allegation, including a determination regarding responsibility, any disciplinary sanctions the district imposes on the respondent, and whether remedies designed to restore or preserve equal access to the district's education program or activity will be provided by the district to the complainant; and
6. The district's procedures and permissible bases for the complainant and respondent to appeal.

The district must provide the written determination to the parties simultaneously. The determination regarding responsibility becomes final either on the date that the district provides the parties with the written determination of the result of the appeal, if an appeal is filed, or if an appeal is not filed, the date on which an appeal would no longer be considered timely.

34 C.F.R. 106.45(b)(7)(i)-(ii)

*Implementation
of Remedies*

The Title IX Coordinator is responsible for effective implementation of any remedies. *34 C.F.R. 106.45(b)(7)(iv)*

Appeals

A district must offer both parties an appeal from a determination regarding responsibility, and from a district's dismissal of a formal complaint or any allegations therein, on the following bases:

1. Procedural irregularity that affected the outcome of the matter;
2. New evidence that was not reasonably available at the time the determination regarding responsibility or dismissal was made, that could affect the outcome of the matter; and
3. The Title IX Coordinator, investigator(s), or decision-maker(s) had a conflict of interest or bias for or against complainants or respondents generally or the individual complainant or respondent that affected the outcome of the matter.

A district may offer an appeal equally to both parties on additional bases.

As to all appeals, the district must:

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1. Notify the other party in writing when an appeal is filed and implement appeal procedures equally for both parties;
2. Ensure that the decision-maker(s) for the appeal is not the same person as the decision-maker(s) that reached the determination regarding responsibility or dismissal, the investigator(s), or the Title IX Coordinator;
3. Ensure that the decision-maker(s) for the appeal complies with the standards in the Title IX regulations regarding conflict of interest and bias [see Process for Title IX Formal Complaint, item 3, above];
4. Give both parties a reasonable, equal opportunity to submit a written statement in support of, or challenging, the outcome;
5. Issue a written decision describing the result of the appeal and the rationale for the result; and
6. Provide the written decision simultaneously to both parties.

34 C.F.R. 106.45(b)(8)

*Informal
Resolution*

A district may not require as a condition of enrollment or continuing enrollment, or employment or continuing employment, or enjoyment of any other right, waiver of the right to an investigation and adjudication of formal complaints of sexual harassment consistent with Title IX. Similarly, a district may not require the parties to participate in an informal resolution process and may not offer an informal resolution process unless a formal complaint is filed. However, at any time prior to reaching a determination regarding responsibility the district may facilitate an informal resolution process, such as mediation, that does not involve a full investigation and adjudication, provided that the district:

1. Provides to the parties a written notice disclosing:
 - a. The allegations;
 - b. The requirements of the informal resolution process including the circumstances under which it precludes the parties from resuming a formal complaint arising from the same allegations, provided, however, that at any time prior to agreeing to a resolution, any party has the right to withdraw from the informal resolution process and resume the Title IX formal complaint process with respect to the formal complaint; and
 - c. Any consequences resulting from participating in the informal resolution process, including the records that will be maintained or could be shared;

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2. Obtains the parties' voluntary, written consent to the informal resolution process; and
3. Does not offer or facilitate an informal resolution process to resolve allegations that an employee sexually harassed a student.

34 C.F.R. 106.45(b)(9)

Recordkeeping

A district must maintain for a period of seven years records of:

1. Each sexual harassment investigation including any determination regarding responsibility, any disciplinary sanctions imposed on the respondent, and any remedies provided to the complainant designed to restore or preserve equal access to the district's education program or activity;
2. Any appeal and the result therefrom;
3. Any informal resolution and the result therefrom; and
4. All materials used to train Title IX Coordinators, investigators, decision-makers, and any person who facilitates an informal resolution process. A district must make these training materials publicly available on its website or if the district does not maintain a website the district must make these materials available upon request for inspection by members of the public.

For each response required under Title IX Coordinator Response, above, a district must create, and maintain for a period of seven years, records of any actions, including any supportive measures, taken in response to a report or formal complaint of sexual harassment. In each instance, the district must document the basis for its conclusion that its response was not deliberately indifferent, and document that it has taken measures designed to restore or preserve equal access to the district's education program or activity.

If a district does not provide a complainant with supportive measures, then the district must document the reasons why such a response was not clearly unreasonable in light of the known circumstances. The documentation of certain bases or measures does not limit the district in the future from providing additional explanations or detailing additional measures taken.

34 C.F.R. 106.45(b)(10)

Retaliation
Prohibited

No district or other person may intimidate, threaten, coerce, or discriminate against any individual for the purpose of interfering with any right or privilege secured by Title IX, or because the individual has made a report or complaint, testified, assisted, or participated

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or refused to participate in any manner in an investigation, proceeding, or hearing under Title IX.

Intimidation, threats, coercion, or discrimination, including charges against an individual for code of conduct violations that do not involve sex discrimination or sexual harassment, but arise out of the same facts or circumstances as a report or complaint of sex discrimination, or a report or formal complaint of sexual harassment, for the purpose of interfering with any right or privilege secured by Title IX, constitutes retaliation.

Complaints alleging retaliation may be filed according to the Process for Title IX Formal Complaint above.

The exercise of rights protected under the First Amendment does not constitute retaliation prohibited by Title IX.

Charging an individual with a code of conduct violation for making a materially false statement in bad faith in the course of a Title IX formal complaint proceeding does not constitute retaliation prohibited by Title IX, provided, however, that a determination regarding responsibility, alone, is not sufficient to conclude that any party made a materially false statement in bad faith.

34 C.F.R. 106.71(a)-(b)

Confidentiality

The district must keep confidential the identity of any individual who has made a report or complaint of sex discrimination, including any individual who has made a report or filed a formal complaint of sexual harassment, any complainant, any individual who has been reported to be the perpetrator of sex discrimination, any respondent, and any witness, except as may be permitted by the Family Educational Rights and Privacy Act (FERPA) statute, 20 U.S.C. 1232g, or FERPA regulations, 34 C.F.R. Part 99, or as required by law, or to carry out the purposes of 34 C.F.R. Part 106, including the conduct of any investigation, hearing, or judicial proceeding arising thereunder. *34 C.F.R. 106.71(a)*

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Note: This policy addresses discrimination, including harassment, and retaliation against District students. For provisions regarding discrimination, including harassment, and retaliation against District employees, see DIA. For reporting requirements related to child abuse and neglect, see FFG. Note that FFH shall be used in conjunction with FFI (bullying) for certain prohibited conduct.

Prohibited Conduct

In this policy, the term “prohibited conduct” includes discrimination, harassment, dating violence, and retaliation as defined by this policy, even if the behavior does not rise to the level of unlawful conduct.

Prohibited conduct also includes sexual harassment as defined by Title IX. [See FFH(LEGAL)]

**Statement of
Nondiscrimination**

The District prohibits discrimination, including harassment, against any student. Discrimination is defined as treating a student or group of students differently from similarly situated students on the basis of race, color, religion, sex, gender, national origin, age, disability, or any other basis prohibited by law. One type of harassment this policy prohibits is dating violence, as defined below. Retaliation against anyone exercising their rights under this policy is a violation of District policy and is prohibited.

Harassment

Harassment of a student is defined as physical, verbal, or nonverbal conduct based on the student’s race, color, religion, sex, gender, national origin, age, disability, or any other basis prohibited by law, when the conduct is so severe, persistent, or pervasive that the conduct:

1. Affects a student’s ability to participate in or benefit from an educational program or activity, or creates an intimidating, threatening, hostile, or offensive educational environment;
2. Has the purpose or effect of substantially or unreasonably interfering with the student’s academic performance; or
3. Otherwise adversely affects the student’s educational opportunities.

Harassment includes dating violence as defined by law and this policy.

Examples

Examples of prohibited harassment may include offensive or derogatory language directed at another person’s religious beliefs or practices, accent, skin color, or need for accommodation; threatening, intimidating, or humiliating conduct; offensive jokes, name call-

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ing, slurs, or rumors; cyberharassment; physical aggression or assault; display of graffiti or printed material promoting racial, ethnic, or other negative stereotypes; or other kinds of aggressive conduct such as theft or damage to property.

**Title IX Sexual
Harassment**

As required by law, the District shall follow the procedures below at Response to Title IX Sexual Harassment upon a report of sex-based harassment, including sexual harassment, gender-based harassment, and dating violence, when such allegations, if proved, would meet the definition of sexual harassment in an education program or activity and against a person in the United States under Title IX. [See FFH(LEGAL)]

**Other Sexual
Harassment**

By an Employee

Sexual harassment of a student by a District employee includes both welcome and unwelcome sexual advances; requests for sexual favors; sexually motivated physical, verbal, or nonverbal conduct; or other conduct or communication of a sexual nature when:

1. A District employee causes the student to believe that the student must submit to the conduct in order to participate in a school program or activity, or that the employee will make an educational decision based on whether or not the student submits to the conduct; or
2. The conduct is so severe, persistent, or pervasive that it:
 - a. Affects the student's ability to participate in or benefit from an educational program or activity, or otherwise adversely affects the student's educational opportunities; or
 - b. Creates an intimidating, threatening, hostile, or abusive educational environment.

Romantic or other inappropriate social relationships between students and District employees are prohibited. Any sexual relationship between a student and a District employee is always prohibited, even if consensual. [See DH]

By Others

Sexual harassment of a student, including harassment committed by another student, includes unwelcome sexual advances; requests for sexual favors; or sexually motivated physical, verbal, or nonverbal conduct when the conduct is so severe, persistent, or pervasive that it:

1. Affects a student's ability to participate in or benefit from an educational program or activity, or creates an intimidating, threatening, hostile, or offensive educational environment;
2. Has the purpose or effect of substantially or unreasonably interfering with the student's academic performance; or

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3. Otherwise adversely affects the student's educational opportunities.

Examples

Examples of sexual harassment of a student may include sexual advances; touching intimate body parts or coercing physical contact that is sexual in nature; jokes or conversations of a sexual nature; and other sexually motivated conduct, contact, or communications, including electronic communication.

Necessary or permissible physical contact such as assisting a child by taking the child's hand, comforting a child with a hug, or other physical contact not reasonably construed as sexual in nature is not sexual harassment.

Gender-Based Harassment

Gender-based harassment includes physical, verbal, or nonverbal conduct based on the student's gender, the student's expression of characteristics perceived as stereotypical for the student's gender, or the student's failure to conform to stereotypical notions of masculinity or femininity. For purposes of this policy, gender-based harassment is considered prohibited harassment if the conduct is so severe, persistent, or pervasive that the conduct:

1. Affects a student's ability to participate in or benefit from an educational program or activity, or creates an intimidating, threatening, hostile, or offensive educational environment;
2. Has the purpose or effect of substantially or unreasonably interfering with the student's academic performance; or
3. Otherwise adversely affects the student's educational opportunities.

Examples

Examples of gender-based harassment directed against a student, regardless of the student's or the harasser's actual or perceived sexual orientation or gender identity, may include offensive jokes, name-calling, slurs, or rumors; cyberharassment; physical aggression or assault; threatening or intimidating conduct; or other kinds of aggressive conduct such as theft or damage to property.

Dating Violence

Dating violence occurs when a person in a current or past dating relationship uses physical, sexual, verbal, or emotional abuse to harm, threaten, intimidate, or control the other person in the relationship. Dating violence also occurs when a person commits these acts against a person in a marriage or dating relationship with the individual who is or was once in a marriage or dating relationship with the person committing the offense.

For purposes of this policy, dating violence is considered prohibited harassment if the conduct is so severe, persistent, or pervasive that the conduct:

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1. Affects a student's ability to participate in or benefit from an educational program or activity, or creates an intimidating, threatening, hostile, or offensive educational environment;
2. Has the purpose or effect of substantially or unreasonably interfering with the student's academic performance; or
3. Otherwise adversely affects the student's educational opportunities.

Examples

Examples of dating violence against a student may include physical or sexual assaults; name-calling; put-downs; or threats directed at the student, the student's family members, or members of the student's household. Additional examples may include destroying property belonging to the student, threatening to commit suicide or homicide if the student ends the relationship, attempting to isolate the student from friends and family, stalking, threatening a student's spouse or current dating partner, or encouraging others to engage in these behaviors.

**Reporting
Procedures**

Student Report

Any student who believes that he or she has experienced prohibited conduct and any person who believes that a student has experienced prohibited conduct should immediately report the alleged acts to a teacher, school counselor, principal, other District employee, or the appropriate District official listed in this policy.

Employee Report

Any District employee who suspects or receives direct or indirect notice that a student or group of students has or may have experienced prohibited conduct shall immediately notify the appropriate District official listed in this policy and take any other steps required by this policy.

**Definition of District
Officials**

For the purposes of this policy, District officials are the Title IX coordinator, the ADA/Section 504 coordinator, and the Superintendent.

*Title IX
Coordinator*

Reports of discrimination based on sex, including sexual harassment, gender-based harassment, or dating violence, may be directed to the designated Title IX coordinator for students. [See FFH(EXHIBIT)]

*ADA /
Section 504
Coordinator*

Reports of discrimination based on disability may be directed to the designated ADA/Section 504 coordinator for students. [See FFH(EXHIBIT)]

Superintendent

The Superintendent shall serve as coordinator for purposes of District compliance with all other nondiscrimination laws.

**Alternative
Reporting
Procedures**

An individual shall not be required to report prohibited conduct to the person alleged to have committed the conduct. Reports concerning prohibited conduct, including reports against the Title IX

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coordinator or ADA/Section 504 coordinator, may be directed to the Superintendent.

A report against the Superintendent may be made directly to the Board. If a report is made directly to the Board, the Board shall appoint an appropriate person to conduct an investigation.

Timely Reporting

To ensure the District's prompt investigation, reports of prohibited conduct shall be made as soon as possible after the alleged act or knowledge of the alleged act.

Notice to Parents

The District official or designee shall promptly notify the parents of any student alleged to have experienced prohibited conduct by a District employee or another adult. [For parental notification requirements regarding an allegation of educator misconduct with a student, see FFF.]

When the District receives a report of prohibited conduct that includes dating violence, the appropriate District official shall immediately notify the parent or guardian of the student who has been identified in the report as the alleged victim or perpetrator.

**Investigation of
Reports Other Than
Title IX**

The following procedures apply to all allegations of prohibited conduct other than allegations of harassment prohibited by Title IX. [See FFH(LEGAL)] For allegations of sex-based harassment that, if proved, would meet the definition of sexual harassment under Title IX, including sexual harassment, gender-based harassment, and dating violence, see the procedures below at Response to Title IX Sexual Harassment.

The District may request, but shall not require, a written report. If a report is made orally, the District official shall reduce the report to written form.

Initial Assessment

Upon receipt or notice of a report, the District official shall determine whether the allegations, if proved, would constitute prohibited conduct as defined by this policy. If so, the District shall immediately undertake an investigation, except as provided below at Criminal Investigation.

If the District official determines that the allegations, if proved, would not constitute prohibited conduct as defined by this policy, the District official shall refer the complaint for consideration under FFI.

Interim Action

If appropriate and regardless of whether a criminal or regulatory investigation regarding the alleged conduct is pending, the District shall promptly take interim action calculated to address prohibited conduct or bullying prior to the completion of the District's investigation.

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District Investigation	The investigation may be conducted by the District official or a designee, such as the principal, or by a third party designated by the District, such as an attorney. When appropriate, the principal shall be involved in or informed of the investigation. The investigation may consist of personal interviews with the person making the report, the person against whom the report is filed, and others with knowledge of the circumstances surrounding the allegations. The investigation may also include analysis of other information or documents related to the allegations.
Criminal Investigation	If a law enforcement or regulatory agency notifies the District that a criminal or regulatory investigation has been initiated, the District shall confer with the agency to determine if the District investigation would impede the criminal or regulatory investigation. The District shall proceed with its investigation only to the extent that it does not impede the ongoing criminal or regulatory investigation. After the law enforcement or regulatory agency has finished gathering its evidence, the District shall promptly resume its investigation.
Concluding the Investigation	Absent extenuating circumstances, such as a request by a law enforcement or regulatory agency for the District to delay its investigation, the investigation should be completed within ten District business days from the date of the report; however, the investigator shall take additional time if necessary to complete a thorough investigation. The investigator shall prepare a written report of the investigation. The report shall include a determination of whether prohibited conduct or bullying occurred. The report shall be filed with the District official overseeing the investigation.
<i>Notification of Outcome</i>	Notification of the outcome of the investigation shall be provided to both parties in compliance with FERPA.
District Action <i>Prohibited Conduct</i>	If the results of an investigation indicate that prohibited conduct occurred, the District shall promptly respond by taking appropriate disciplinary action in accordance with the Student Code of Conduct and may take corrective action reasonably calculated to address the conduct.
Corrective Action	Examples of corrective action may include a training program for those involved in the report, a comprehensive education program for the school community, counseling to the victim and the student who engaged in prohibited conduct, follow-up inquiries to determine if any new incidents or any instances of retaliation have occurred, involving parents and students in efforts to identify problems and improve the school climate, increasing staff monitoring of

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areas where prohibited conduct has occurred, and reaffirming the District's policy against discrimination, harassment, and retaliation.

Bullying

If the results of an investigation indicate that bullying occurred, as defined by FFI, the District official shall refer to FFI for appropriate notice to parents and District action. The District official shall refer to FDB for transfer provisions.

*Improper
Conduct*

If the investigation reveals improper conduct that did not rise to the level of prohibited conduct or bullying, the District may take disciplinary action in accordance with the Student Code of Conduct or other corrective action reasonably calculated to address the conduct.

Confidentiality

To the greatest extent possible, the District shall respect the privacy of the complainant, persons against whom a report is filed, and witnesses. Limited disclosures may be necessary in order to conduct a thorough investigation and comply with applicable law.

Appeal

A student or parent who is dissatisfied with the outcome of the investigation may appeal through FNG(LOCAL), beginning at the appropriate level. A student or parent has the right to file a complaint with the United States Department of Education Office for Civil Rights.

**Response to Title IX
Sexual Harassment**

For purposes of the District's response to reports of harassment prohibited by Title IX, definitions can be found in FFH(LEGAL).

General Response

When the District receives notice or an allegation of conduct that, if proved, would meet the definition of sexual harassment under Title IX, the Title IX coordinator shall promptly contact the complainant to:

- Discuss the availability of supportive measures and inform the complainant that they are available, with or without the filing of a formal complaint;
- Consider the complainant's wishes with respect to supportive measures; and
- Explain to the complainant the option and process for filing a formal complaint.

The District's response to sexual harassment shall treat complainants and respondents equitably by offering supportive measures to both parties, as appropriate, and by following the Title IX formal complaint process before imposing disciplinary sanctions or other actions that are not supportive measures against a respondent.

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If a formal complaint is not filed or dismissed, the District reserves the right to investigate and respond to prohibited conduct in accordance with Board policies and the Student Code of Conduct. The Title IX coordinator also reserves the right to sign a formal complaint, initiating the Title IX grievance process, if it would be deliberately indifferent not to investigate and respond to the prohibited conduct in accordance with Board policies and the Student Code of Conduct.

Title IX Formal
Complaint Process

To distinguish the process described below from the District's general grievance policies [see DGBA, FNG, and GF], this policy refers to the grievance process required by Title IX regulations for responding to formal complaints of sexual harassment as the District's "Title IX formal complaint process."

The Superintendent shall ensure the development of a Title IX formal complaint process that complies with legal requirements. [See FFH(LEGAL)] The formal complaint process shall be posted on the District's website. In compliance with Title IX regulations, the District's Title IX formal complaint process shall address the following basic requirements:

1. Equitable treatment of complainants and respondents;
2. An objective evaluation of all relevant evidence;
3. A requirement that the Title IX coordinator, investigator, decision-maker, or any person designated to facilitate an informal resolution process not have a conflict of interest or bias;
4. A presumption that the respondent is not responsible for the alleged sexual harassment until a determination is made at the conclusion of the Title IX formal complaint process;
5. Time frames that provide for a reasonably prompt conclusion of the Title IX formal complaint process, including time frames for appeals and any informal resolution process, and that allow for temporary delays or the limited extension of time frames with good cause and written notice as required by law;
6. A description of the possible disciplinary sanctions and remedies that may be implemented following a determination of responsibility for the alleged sexual harassment;
7. A statement of the standard of evidence to be used to determine responsibility for all Title IX formal complaints of sexual harassment;
8. Procedures and permissible bases for the complainant and respondent to appeal a determination of responsibility or a

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dismissal of a Title IX formal complaint or any allegations therein;

9. A description of the supportive measures available to the complainant and respondent;
10. A prohibition on using or seeking information protected under a legally recognized privilege unless the individual holding the privilege has waived the privilege;
11. Additional formal complaint procedures in 34 C.F.R. 106.45(b), including written notice of a formal complaint, consolidation of formal complaints, recordkeeping, and investigation procedures; and
12. Other local procedures as determined by the Superintendent.

Standard of
Evidence

The standard of evidence used to determine responsibility in a Title IX formal complaint of sexual harassment shall be the preponderance of the evidence.

Retaliation

The District prohibits retaliation by a student or District employee against a student alleged to have experienced discrimination or harassment, including dating violence, or another student who, in good faith, makes a report of harassment or discrimination, files a complaint of harassment or discrimination, serves as a witness, or participates in an investigation. The definition of prohibited retaliation under this policy also includes retaliation against a student who refuses to participate in any manner in an investigation under Title IX. In the absence of a formal complaint, allegations of retaliation shall be investigated under Investigation of Reports Other Than Title IX, above.

Examples

Examples of retaliation may include threats, intimidation, coercion, rumor spreading, ostracism, assault, destruction of property, unjustified punishments, or unwarranted grade reductions. Unlawful retaliation does not include petty slights or annoyances.

False Claim

A student who intentionally makes a false claim or offers false statements in a District investigation regarding discrimination or harassment, including dating violence, shall be subject to appropriate disciplinary action in accordance with law.

Records Retention

The District shall retain copies of allegations, investigation reports, and related records regarding any prohibited conduct in accordance with the District's records control schedules, but for no less than the minimum amount of time required by law. [See CPC]

[For Title IX recordkeeping and retention provisions, see FFH(LEGAL) and the District's Title IX formal complaint process.]

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**Access to Policy and
Procedures**

Information regarding this policy and any accompanying procedures shall be distributed annually in the employee and student handbooks. Copies of the policy and procedures shall be posted on the District's website, to the extent practicable, and readily available at each campus and the District's administrative offices.

EXHIBIT 8

STUDENT RIGHTS AND RESPONSIBILITIES
STUDENT AND PARENT COMPLAINTS/GRIEVANCES

FNG
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**United States
Constitution**

A district shall take no action abridging the freedom of speech or the right of the people to petition the board for redress of grievances. *U.S. Const. Amend. I, XIV* [See FNA]

A board may confine its meetings to specified subject matter and may hold nonpublic sessions to transact business. But when a board sits in public meetings to conduct public business and hear the views of citizens, it may not discriminate between speakers on the basis of the content of their speech or the message it conveys. *Rosenberger v. Rector & Visitors of Univ. of Virginia*, 515 U.S. 819, 828 (1995); *City of Madison v. Wis. Emp. Rel. Comm'n*, 429 U.S. 167, 174 (1976); *Pickering v. Bd. of Educ.*, 391 U.S. 563, 568 (1968)

Texas Constitution

Citizens shall have the right, in a peaceable manner, to assemble together for their common good and to apply to those invested with the powers of government for redress of grievances or other purposes, by petition, address, or remonstrance. *Tex. Const. Art. I, Sec. 27*

There is no requirement that a board negotiate or even respond to complaints. However, a board must stop, look, and listen and must consider the petition, address, or remonstrance. *Prof'l Ass'n of College Educators v. El Paso County Cmty. [College] Dist.*, 678 S.W.2d 94 (Tex. App.—El Paso 1984, writ ref'd n.r.e.)

Federal Laws

Section 504

A district that receives federal financial assistance, directly or indirectly, and that employs 15 or more persons shall adopt grievance procedures that incorporate appropriate due process standards and that provide for the prompt and equitable resolution of complaints alleging any action prohibited by Section 504 of the Rehabilitation Act of 1973. *34 C.F.R. 104.7(b)*

Americans with
Disabilities Act

A district that employs 50 or more persons shall adopt and publish grievance procedures providing for prompt and equitable resolution of complaints alleging any action that would be prohibited by the Code of Federal Regulations, Title 28, Part 35 (Americans with Disabilities Act regulations). *28 C.F.R. 35.107*

Title IX

A district that receives federal financial assistance, directly or indirectly, must adopt and publish grievance procedures providing for prompt and equitable resolution of student complaints alleging any action prohibited by Title IX of the Education Amendments of 1972. *34 C.F.R. 106.8(c)* [See FB and FFH]

Grievances

A board shall provide for procedures to consider complaints that a parent's right has been denied. *Education Code 26.001(d)(1)*

A board shall adopt a grievance procedure that complies with Education Code Chapter 26A under which the board shall address

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each grievance that it receives concerning a violation of a right guaranteed by Education Code Chapter 26 (Parental Rights), of a board policy, or of a provision of Education Code Title II.

Exceptions

The board is not required by the provision above or Education Code 11.1511(b)(13) (requiring adoption of a process to hear complaints) to address a grievance concerning a student's participation in an extracurricular activity that does not involve a violation of a right guaranteed by Education Code Chapter 26, of a board policy, or of a provision of Education Code Title II. This provision does not affect a claim brought by a parent under the Individuals with Disabilities Education Act (20 U.S.C. Section 1400 et seq.) or a successor federal statute addressing special education services for a child with a disability.

Notice to Teacher
or Employee

The grievance procedure must require that, for a complaint filed against a teacher or other employee, the school district provide notice of the complaint to the teacher or employee against whom the complaint was filed and sufficient opportunity for the teacher or employee against whom the complaint was filed to submit a written response to the complaint to be included in the record.

Education Code 26.011

Grievance Policy

The board shall adopt a grievance policy to address grievances received by the district. *Education Code 26A.001(a)*

Levels of Review

The policy must provide for the following levels of review, except as provided below:

1. Review by the principal of the district campus at which the grievance is filed or the principal's designee or, for a grievance that arises from subject matter unrelated to a campus, an administrator at the school district's central office;
2. If established by the policy, an appeal to an administrator at the school district's central office;
3. An appeal to the superintendent of the school district or the superintendent's designee; and
4. An appeal to the board of trustees of the school district.

A review or appeal on a grievance must be conducted by a person with the authority to address the grievance unless a preliminary hearing is necessary to develop a record or a recommendation for the board of trustees of the school district.

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[For requirements for determining level of review related to recusal of a district employee or board member, see General Requirements, below.]

Education Code 26A.001(b), (c)

*General
Requirements*

The policy must:

1. Prohibit the board or a district employee from retaliating against a student or parent of a student who files a grievance in accordance with the policy;
2. Require a person involved in reviewing a grievance under the policy to recuse himself or herself from reviewing the grievance if the person is the subject of the grievance;
3. Provide for a higher level of review if the person who would otherwise review the grievance is required to recuse himself or herself;
4. Provide for the creation and retention of a record of each hearing on the grievance, including documents submitted by the person who filed the grievance or determined relevant by school district personnel and a written record of the decision, including an explanation of the basis for the decision and an indication of each document that supports the decision;
5. Allow the person who filed the grievance to supplement the record with additional documents or add additional claims;
6. Allow for a member of the board to file a grievance with the district, but prohibit the member from voting on matters related to that grievance;
7. Allow for a remand to a lower level of review to develop a record at any time, including at the board level of review;
8. Require the district to direct a grievance that is filed with the incorrect administrator to the appropriate administrator and consider the grievance filed on the date on which the grievance was initially filed;
9. Require the district to issue a decision on the merits of the concern raised in the grievance, notwithstanding procedural errors or the type of relief requested;
10. Unless otherwise required by law, allow for a hearing or meeting at which the grievance will be discussed to be open or closed at the request of the person who filed the grievance; and

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(LEGAL)

11. For a grievance before the board, require that the person who filed the grievance be provided at least five business days before the date on which the meeting to discuss the grievance will be held a description of any information the board of trustees intends to rely on that is not contained in the record; and
12. For a grievance before the board, require the meeting at which the grievance is discussed be recorded by video or audio recording or by transcript created by a certified court reporter.

Education Code 26A.001(e)

Deadlines

Parental
Grievances

For a grievance filed by a parent of a student enrolled in the school district, the policy must provide:

1. Sixty days to file a grievance from the date on which the parent knew or had reason to know of the facts giving rise to the grievance; or
2. If the parent or person engaged in informal attempts to resolve the grievance, the later of 90 days to file a grievance from the date determined above or 30 days to file a grievance from the date on which the district provided information to the parent or person regarding how to file the grievance.

Appeal

The policy must provide at least 20 days to file an appeal after the date on which a decision on the grievance was made.

Hearings

For a hearing that is not before the board of trustees of the school district, the policy must require:

1. The district to hold a hearing not later than the 10th day after the date on which the grievance or appeal was filed; and
2. A written decision to be made not later than the 20th day after the date on which the hearing was held that includes any relief or redress to be provided and information regarding filing an appeal, including the timeline to appeal under this provision and Education Code 7.057, if applicable.

For a hearing before the board, the policy must require the board to:

1. Hold a meeting to discuss the grievance not later than the 60th day after the date on which the previous decision on the grievance was made; and

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2. Make a decision on the grievance not later than the 30th day after the date on which the meeting is held.

Education Code 26A.002

Board Committee The board may delegate the authority to hear and decide a grievance to a committee of at least three members composed only of members of the board. For purposes of an appeal to the commissioner under Education Code 7.057, a decision by the committee is a decision of the board of trustees. The policy requirements above apply to the committee in the same manner as those requirements apply to the board. *Education Code 26A.001(e)*

Report on Grievances A district shall annually submit to the Texas Education Agency (TEA) a report on grievances filed in the district during the preceding year. The report must include for each grievance the resolution of the grievance and any corrective action taken. *Education Code 26A.001(g)*

Not later than December 1 of each year, TEA shall post on the agency's website a report on grievances filed in school districts during the preceding year. The report must aggregate the data statewide and state the number of grievances filed, the number of grievances resolved and the resolution of those grievances, and any corrective actions taken. *Education Code 26A.001(h)*

Filing Procedures and Forms The board shall develop, make publicly available in a prominent location on the district's website, and include in the district's student handbook the procedures for resolving grievances; standardized forms for filing a grievance, a notice of appeal, or a request for a hearing under this chapter; and the method by which a grievance may be filed electronically.

Electronic Filing A district shall ensure that a grievance may be submitted electronically at the location on the district's website at which the information described above is available.

TEA Notification A district shall submit and make accessible to TEA the location on the district's website at which the information described above is available.

Education Code 26A.003

Commissioner Enforcement If a grievance is appealed to the commissioner under Education Code 7.057, the commissioner of education may:

On Appeal

1. Investigate an alleged violation of state or federal law regarding the confidentiality of student information, including the Family Educational Rights and Privacy Act of 1974 (20 U.S.C.

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Section 1232g), relating to the grievance and collaborate with relevant federal agencies in such an investigation; and

2. Take any action necessary to compel the district, the district's board, or a district employee to comply with the state or federal law.

Education Code 26A.001(f)

Determination of Retaliation

If the commissioner determines that a school district educator has retaliated against a student or parent of or person standing in parental relation to a student in violation of the policy requirement, above, the commissioner of education may report the educator to the State Board for Educator Certification for investigation. *Education Code 26A.001(i)*

Superintendent Testimony

If the commissioner of education finds against a school district under Education Code 7.057 in at least five grievances to which that provision applies involving the district during a school year, the superintendent of the school district must appear before the State Board of Education to testify regarding the commissioner's findings and the frequency of grievances against the district. *Education Code 26A.004*

Denial of Class Credit or Final Grade

If a student is denied credit or a final grade for a class by an attendance committee, the student may appeal the decision to the board. *Education Code 25.092(d)* [See FEC]

Complaints Against Professional Employees

A person may not file suit against a professional employee of a district unless the person has exhausted the district's remedies for resolving the complaint. *Education Code 22.0514*

"Professional employee of a district" includes:

1. A superintendent, principal, teacher, including a substitute teacher, supervisor, social worker, school counselor, nurse, and teacher's aide employed by a district;
2. A teacher employed by a company that contracts with a district to provide the teacher's services to the district;
3. A student in an education preparation program participating in a field experience or internship;
4. A DPS-certified school bus driver;
5. A member of the board; and
6. Any other person whose employment by a district requires certification and the exercise of discretion.

Education Code 22.051(a)

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Finality of Grades

An examination or course grade issued by a classroom teacher is final and may not be changed unless the grade is arbitrary, erroneous, or not consistent with a district's grading policy applicable to the grade, as determined by the board.

A board's determination is not subject to appeal. This provision does not prohibit an appeal related to a student's eligibility to participate in extracurricular activities under Education Code 33.081. [See FM]

Education Code 28.0214

Closed Meeting

A board may conduct a closed meeting on a parent or student complaint to the extent required or provided by law. *Gov't Code Ch. 551, Subch. D* [See BEC]

Record of Proceedings

An appeal of a board's decision to the commissioner of education shall be decided based on a review of the record developed at the district level. "Record" includes, at a minimum, an audible electronic recording or written transcript of all oral testimony or argument. *Education Code 7.057(c), (f)*

It is a district's responsibility to make and preserve the records of the proceedings before the board. If a district fails to create and preserve the record without good cause, all substantial evidence issues that require missing portions of the record for resolution shall be deemed against the district. The record shall include:

1. A tape recording or a transcript of the hearing at the local level. If a tape recording is used:
 - a. The tape recording must be complete, audible, and clear; and
 - b. Each speaker must be clearly identified.
2. All evidence admitted;
3. All offers of proof;
4. All written pleadings, motions, and intermediate rulings;
5. A description of matters officially noticed;
6. If applicable, the decision of the hearing examiner;
7. A tape recording or transcript of the oral argument before the board; and
8. The decision of the board.

19 TAC 157.1073(d)

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Complaints

In this policy, the terms “complaint” and “grievance” shall have the same meaning.

Other Complaint
Processes

Student or parent complaints shall be filed in accordance with this policy, except as required by the policies listed below. Some of these policies require appeals to be submitted in accordance with FNG after the relevant complaint process has been followed:

1. Complaints alleging discrimination or harassment based on race, color, religion, sex, gender, national origin, age, or disability shall be submitted in accordance with FFH.
2. Complaints concerning dating violence shall be submitted in accordance with FFH.
3. Complaints concerning retaliation related to discrimination and harassment shall be submitted in accordance with FFH.
4. Complaints concerning bullying or retaliation related to bullying shall be submitted in accordance with FFI.
5. Complaints concerning failure to award credit or a final grade on the basis of attendance shall be submitted in accordance with FEC.
6. Complaints concerning expulsion shall be submitted in accordance with FOD and the Student Code of Conduct.
7. Complaints concerning any final decisions of the gifted and talented selection committee regarding selection for or exit from the gifted program shall be submitted in accordance with EHBB.
8. Complaints within the scope of Section 504, including complaints concerning identification, evaluation, or educational placement of a student with a disability, shall be submitted in accordance with FB and the procedural safeguards handbook.
9. Complaints within the scope of the Individuals with Disabilities Education Act, including complaints concerning identification, evaluation, educational placement, or discipline of a student with a disability, shall be submitted in accordance with EHBAE, FOF, and the procedural safeguards handbook provided to parents of all students referred to special education.
10. Complaints concerning instructional resources shall be submitted in accordance with the EF series.

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11. Complaints concerning a commissioned peace officer who is an employee of the District shall be submitted in accordance with the CKE series.
12. Complaints concerning intradistrict transfers or campus assignment shall be submitted in accordance with FDB.
13. Complaints concerning admission, placement, or services provided for a homeless student shall be submitted in accordance with FDC.
14. Complaints concerning disputes regarding a student's eligibility for free or reduced-priced meal programs shall be submitted in accordance with COB.

Complaints regarding refusal of entry to or ejection from District property based on Education Code 37.105 shall be filed in accordance with this policy. However, the timelines shall be adjusted as necessary to permit the complainant to address the Board in person within 90 calendar days of filing the initial complaint, unless the complaint is resolved before the Board considers it. [See GKA(LEGAL)]

Notice to Students and Parents

The District shall inform students and parents of this policy through appropriate District publications and on the District's website.

Informal Process

The Board encourages students and parents to discuss their concerns with the appropriate teacher, principal, or other appropriate campus or District administrator who has the authority to address the concerns. Concerns should be expressed as soon as possible to allow early resolution at the lowest possible administrative level.

Filing Deadlines

After Informal Process

If a student or parent has engaged in the informal process in an attempt to resolve the complaint with the District and has not reached a resolution during the process, the student or parent shall have the later of:

- Ninety calendar days to file a complaint from the date the student or parent first knew, or with reasonable diligence should have known, of the decision or action giving rise to the complaint; or
- Thirty calendar days to file a complaint from the date on which the District provided information to the student or parent regarding how to file a grievance.

[See Formal Process, below]

No Prior Informal Process

If the student or parent has not engaged in the informal process, the student or parent shall have no more than 60 calendar days from the date the student or parent first knew, or with reasonable

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diligence should have known, of the decision or action giving rise to the complaint or grievance to file a complaint using the appropriate form.

Deadline Extensions

All deadlines shall be followed unless otherwise required by law or modified by mutual written consent.

Formal Process

A student or parent may initiate the formal process described below by timely filing a written complaint form.

The process described in this policy shall not be construed to create new or additional rights beyond those granted by law or Board policy, nor to require a full evidentiary hearing or “mini-trial” at any level.

The complaint form shall be filed with the District-level administrator designated to accept formal complaint filings. The District-level administrator shall assign the complaint to be heard by the lowest-level administrator who has the authority to remedy the alleged problem. In most circumstances, Level One complaints filed by students and parents shall be assigned to be heard by the campus principal for any complaint on a matter related to a campus. For a complaint that arises on a matter that is unrelated to a campus, the complaint shall be assigned to be heard by the appropriate District-level administrator.

A Board member shall be permitted to file a complaint under this policy, but, if the complaint is considered by the Board or Board committee, the Board member shall be prohibited from voting on the Board’s or Board committee’s decision.

If the complaint is not filed with the appropriate administrator, the receiving administrator must note the date and time the complaint form was received and immediately forward the complaint form to the appropriate administrator.

Option to Continue Informal Process

Even after initiating the formal complaint process, the complainant is encouraged to seek informal resolution of their concerns. A complainant whose concerns are resolved may withdraw a formal complaint at any time.

Notice of Complaint

A District employee against whom a complaint has been filed shall be provided notice of the complaint in accordance with administrative regulations. The employee shall have sufficient opportunity to submit a written response to the complaint that shall be included in the record of the complaint.

Freedom from Retaliation

Neither the Board nor any District employee shall unlawfully retaliate against any student or parent for bringing a concern or complaint.

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General Provisions

Filing

Complaint forms and appeal notices may be filed by electronic submission. Filings by electronic submission shall be timely filed if they are received by the close of business on the deadline, as indicated by the date/time shown on the electronic submission.

Scheduling
Hearings

The District shall make reasonable attempts to schedule hearings at a mutually agreeable time. If a complainant fails to appear at a scheduled hearing, the District may hold the hearing and issue a decision in the complainant's absence.

Decision

A "decision" shall mean a written communication to the complainant from the appropriate administrator that provides an explanation of the basis of the decision, an indication of each document that supports the decision, and any relief or redress to be provided. A decision shall be issued on the merits of the concern raised in the complaint notwithstanding any procedural errors or the type of relief or redress requested, unless issuance of a decision on the merits of the concern is otherwise prohibited by law.

The decision shall also include information regarding the filing of an appeal in accordance with this policy. After a hearing at Level Three, the decision shall include information on submitting an appeal to the commissioner.

A decision may be hand-delivered, sent by electronic communication to the complainant's email address of record, or sent by U.S. Mail to the complainant's mailing address of record. Mailed decisions shall be timely if they are postmarked by U.S. Mail on or before the deadline.

Representative

"Representative" shall mean any person who or organization that is designated by the complainant to represent the complainant in the complaint process. A student may be represented by an adult at any level of the complaint.

The complainant may designate a representative through written notice to the District at any level of this process. The representative may participate in person or by telephone conference call. If the complainant designates a representative with fewer than three business days' notice to the District before a scheduled hearing, the District may reschedule the hearing to a later date, if desired, in order to include the District's counsel. The District may be represented by counsel at any level of the process.

Consolidating
Complaints

To promote efficiency in addressing complaints, the appropriate administrator shall determine if separate or serial complaints arising from an event or series of related events shall be consolidated.

Costs Incurred

Each party shall pay its own costs incurred in the course of the complaint.

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**Complaint and
Appeal Forms**

Complaints and appeals under this policy shall be submitted on a form provided by the District through electronic submission. If a complainant needs an accommodation to complete the form via hand-delivery rather than electronic submission, the complainant should contact the District-level administrator assigned to accept formal grievance filings to request a physical form to be provided by the District. If a complainant is granted an accommodation, hand-delivered filings will be timely filed if received by the District-level administrator assigned to accept formal grievance filings or designee by the close of business on the deadline.

Copies of any documents that support the complaint should be included with the complaint filing form. If the complainant does not have copies of these documents, copies may be presented at the Level One hearing. After the Level One hearing, the complainant may supplement the record with additional documents or include additional claims.

Record

A record of each complaint hearing shall be created and retained in accordance with this policy. The record shall include documents submitted by the complainant, documents determined relevant by District personnel, and the decision.

Remand

A complaint or appeal form that is incomplete in any material aspect shall be refiled. If the complainant presents additional complaints, evidence, or requested remedies following the Level One hearing, the complaint may be remanded in order to develop an adequate record of the complaint.

If an adequate record has not been developed, the appropriate administrator may remand the complaint to a lower level, including remand to Level One, if appropriate. The Board or Board committee may remand a complaint to a lower level if at the Board level of review an adequate record has not been developed.

**Assignment of
Hearing Officer**

If the only administrator who has authority to remedy the alleged problem is the Superintendent, the complaint may begin at the appropriate level in accordance with this policy, including a hearing in front of another administrator to develop an adequate record of the complaint. Any established deadlines will remain in place.

When a District employee is the subject of a complaint, the hearing shall be conducted by an administrator who is in a supervisory or higher organizational role. The District employee who is the subject of the complaint shall recuse themselves from reviewing the complaint at any level in the process.

Investigation

The District may conduct an investigation at any level in the complaint process. If the District and the complainant mutually agree,

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all deadlines shall be suspended during an investigation. If an investigation is necessary under a policy that requires appeals to be submitted in accordance with FNG only after the relevant complaint process under a different policy has been followed, the FNG process may be abated by the District to allow the relevant investigation and complaint process to be followed prior to consideration at any level of the FNG process.

Complaint Levels

Level One

At Level One, the appropriate hearing officer shall hold a hearing with the complainant within 10 calendar days after receipt of the written complaint. The hearing officer may set reasonable time limits for the hearing.

The hearing officer shall provide the complainant a decision within 20 calendar days following the hearing. In reaching a decision, the hearing officer may consider information provided with the complaint form and any other relevant documents or information the hearing officer believes will help resolve the complaint.

Level Two

If the complainant did not receive the relief requested at Level One or if the time for a decision has expired, the complainant may request a hearing at Level Two to appeal the Level One decision.

The appeal notice must be filed in writing, on a form provided by the District through electronic submission, within 20 calendar days of the date of the Level One decision or, if no decision has been communicated to the complainant, within 20 calendar days of the Level One decision deadline.

After receiving notice of the appeal, the District-level administrator assigned to receive formal complaints will collaborate with the Level One hearing officer to prepare and forward a record of the Level One complaint to the Level Two hearing officer. The hearing officer shall provide a copy of the Level One record to the complainant upon written request by the complainant.

The Level One record shall include:

1. The original complaint form and any attachments.
2. Any other documents submitted by the complainant at Level One.
3. If the complaint is against a District employee, the written response of the District employee, if any.
4. The decision issued at Level One and any attachments.
5. All other documents relied upon by the Level One hearing officer in reaching the Level One decision.

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The hearing officer shall hold a hearing within 10 calendar days after the appeal notice is filed. The hearing officer may set reasonable time limits for the hearing.

The hearing officer shall provide the complainant a decision within 20 calendar days following the hearing. In reaching a decision, the hearing officer may consider the Level One record, any additional information provided prior to the Level Two hearing, and any other relevant documents or information the hearing officer believes will help resolve the complaint.

Recordings of the Level One and Level Two hearings, if any, shall be maintained with the Level One and Level Two records.

Level Three

If the complainant did not receive the relief requested at Level Two or if the time for a decision has expired, the complainant may appeal the decision to the Board.

The appeal notice must be filed in writing, on a form provided by the District through electronic submission, within 20 calendar days of the date of the Level Two decision or, if no decision has been communicated to the complainant, within 20 calendar days of the Level Two decision deadline.

Unless the Board delegates a committee in accordance with law, the Board shall consider the appeal of the Level Two decision.

After receiving notice of the appeal, the Board or Board committee shall hold a meeting to discuss the complaint no later than 60 calendar days after the date on which the Level Two decision was made.

The Superintendent shall inform the complainant whether the Board or a Board committee will consider the appeal and of the date, time, and place of the meeting at which the complaint will be on the agenda for presentation to the Board or Board committee.

At least five business days before the Board or Board committee meeting, the Superintendent shall provide the complainant a description of any information the Board intends to rely on that is not contained in the record created at the previous hearing levels, including any preliminary hearing.

The Superintendent shall provide the Board the record of the Level Two appeal. The complainant may request a copy of the Level Two record.

The Level Two record shall include:

1. The Level One record.

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2. The notice of appeal from Level One to Level Two.
3. Any other documents submitted by the complainant at Level Two.
4. The decision issued at Level Two and any attachments.
5. All other documents relied upon by the administration in reaching the Level Two decision.

The complainant may request that the complaint be considered in open or closed meeting. The District shall honor that request unless the Texas Open Meetings Act or other applicable law requires otherwise. [See BE]

At the meeting, the presiding officer may set reasonable time limits and guidelines for the presentation, including an opportunity for the complainant and administration to each make a presentation, either orally or in writing, and an opportunity for questioning by Board members, if requested by the Board.

In addition to any other record of the meeting required by law, the Board or Board committee shall prepare a separate record of the Level Three appeal. If the Level Three appeal is made orally, at the request of the Board, including the presentation of information by the complainant or the complainant's representative, any presentation from the administration must be preserved as part of the Level Three record, and questions from Board members with responses shall be recorded by audio recording, video/audio recording, or court reporter.

The Board or Board committee shall then consider the complaint. It shall make a decision no later than 30 calendar days after the date of the Board or Board committee meeting at which the complaint was presented. The complainant shall be provided a decision in accordance with this policy and state law.

EXHIBIT 9



COMPLAINTS PROCEDURES

PARENT/STUDENT COMPLAINTS
EMPLOYEE COMPLAINTS
PUBLIC COMPLAINTS



STEP 1: IDENTIFY THE TYPE OF COMPLAINT

ALL COMPLAINTS ARE CATEGORIZED INTO SPECIFIED COMPLAINT TYPES AND SUBTYPES. THERE ARE THREE PRIMARY COMPLAINT TYPES: STUDENT/PARENT, EMPLOYEE, AND PUBLIC. EACH COMPLAINT TYPE HAS SUBTYPES AND EACH SUBTYPE HAS SPECIFIC PROCESSES THAT APPLY.

COMPLAINT TYPES AND SUBTYPES ARE LISTED BELOW ALONG WITH THE APPLICABLE BOARD POLICY CODE OR COMPLAINT PROCEDURE.

STUDENT/PARENT COMPLAINTS

COMPLAINTS REGARDING PARENTAL RIGHTS (FNG)

Violation of a school law of the state
Violation of local Frisco ISD Board Policy
Objection to classroom or teacher assignment
Objection to gifted and talented selection or exit
Objection to the content or implementation of the educational plan developed under Texas Education Code 28.0211
Failure to provide access to records, information regarding a student, state assessments, or teaching materials
Violation of the right to attend school activities
Failure to award grade or credit based on attendance
Violation of the right to access to board meetings, other than a closed meeting
Failure to obtain required consent for certain activities, including health education instruction, human sexuality instruction, and health services
Improper data collection practices
Report of neglect made on the sole basis of refusal of psychiatric or psychological treatment of child
Violation of the right to a religious exemption from instruction
Concerns regarding admission, placement, or services for homeless students

STUDENT/PARENT COMPLAINTS

APPEAL OF PROHIBITED CONDUCT FINDINGS (FNG)

DISCRIMINATION, HARASSMENT OR RETALIATION (FFH)

BULLYING (FFI)

TITLE IX SEXUAL HARASSMENT COMPLAINT (FFH)

COMPLAINTS REGARDING EXTRACURRICULAR ACTIVITIES (THROUGH LEVEL TWO ONLY)

COMPLAINTS REGARDING DISCIPLINARY ACTIONS OTHER THAN EXPULSION (THROUGH LEVEL TWO ONLY)

APPEAL OF EXPULSION (FOD)

APPEAL OF A GRADE (EIA)

REQUEST TO AMEND A STUDENT'S EDUCATION RECORDS (FL)

CONCERNING INSTRUCTIONAL RESOURCES (EF)

EMPLOYEE COMPLAINTS

GENERAL GRIEVANCE (DGBA)

DISCRIMINATION, HARASSMENT, OR RETALIATION (DIA)

PUBLIC COMPLAINTS

GENERAL COMPLAINT (GF)

CONCERNING INSTRUCTIONAL
RESOURCES (EF)

STEP 2: FILE A COMPLAINT

DIFFERENT PROCEDURES ARE FOLLOWED FOR DIFFERENT TYPES OF COMPLAINTS. CLICK ON THE COMPLAINT WITH THE MOST ACCURATE DESCRIPTION ABOVE TO SEE THE CORRESPONDING PROCESS.

ALL COMPLAINTS MUST BE SUBMITTED THROUGH THE STANDARDIZED ONLINE FORMS UTILIZED BY THE DISTRICT AND ARE FILED THROUGH THE DISTRICT'S COMPLAINTS PORTAL LOCATED ON THE DISTRICT WEBSITE. THE PORTAL GUIDES COMPLAINANTS THROUGH THE PROCESS OF IDENTIFYING THE SPECIFIC COMPLAINT TYPE THEY ARE FILING AND THE RELATED INFORMATION. IF AN INDIVIDUAL CANNOT USE THE PORTAL TO FILE A COMPLAINT, THE INDIVIDUAL MAY CONTACT COMPLAINTRESOLUTION@FRISCOISD.ORG TO REQUEST ASSISTANCE.

DGBA & GF COMPLAINTS

COMPLAINTS REGARDING EMPLOYEE AND PUBLIC CONCERNS

1 LEVEL I

The complaint must be filed within 15 calendar days of the date the complainant became aware, or should have become aware of the incident or decision that is the basis of the allegation.

If the complaint was properly and timely filed, the hearing officer will contact the complainant within 10 district business days of the district's receipt of the complaint to schedule a conference.

If the complaint was not properly and timely filed, the hearing officer will dismiss the complaint.

The hearing officer will conduct the conference and complete an investigation.

The hearing officer will provide a written response to the complaint within 10 district business days of the conference.

2 LEVEL II

The complainant may appeal a level I decision through the complaint portal if they submit the appeal within 10 district business days of the date of the Level I response. The appeal must be submitted by close of business (4:30PM) on the 10th business day.

If the appeal was properly and timely filed, the hearing officer will contact the complainant within 10 district business days of the district's receipt of the appeal to schedule a conference.

If the appeal was not properly or timely filed, the hearing officer will dismiss the appeal.

The hearing officer will conduct the conference and review the Level I record.

The hearing officer will provide a written response to the appeal within 10 district business days of the conference.

3 LEVEL III

The complainant may appeal a Level II decision through the complaint portal if they submit the appeal within 10 district business days of the date of the Level II response. The appeal must be submitted by close of business (4:30PM) on the 10th business day.

If the appeal was properly and timely filed, the Legal Services Department will inform the Board of Trustees and provide them with a copy of the Level II record.

If the appeal was not properly and timely filed, the Legal Services Department will dismiss the appeal.

The Legal Services Department, in consultation with the Board President, will identify the Board Meeting at which the appeal will be considered and inform the complainant of the date.

The appeal will be considered by the Board of Trustees on written submission unless two or more Board members request the complaint be considered in a hearing at least 10 days prior to the Board meeting.

- If the appeal is to be considered on written submission, the complainant's Level III appeal submission serves as their written submission.
- If the appeal is to be considered in a hearing, the complainant and hearing officers will present information relevant to the appeal to the Board of Trustees at the Board Meeting.

The Board of Trustees will vote on the appeal in open session and a written confirmation of the decision will be sent to the complainant within 10 district business days of the meeting.



FNG COMPLAINTS

COMPLAINTS REGARDING PARENT RIGHTS

1 LEVEL I

For complaints filed by parents of enrolled students, the complaint must be filed within 60 calendar days of the date the complainant became aware, or should have become aware of the incident or decision that is the basis of the allegation (such date, the "Date of Incident").

If the parent informally attempted to resolve the grievance, the complaint must be filed within the lesser of 30 days of when the parent was provided information about how to file a complaint or 90 days from the Date of Incident if filing information was not provided to the parent.

If the complaint was not properly and timely filed, the hearing officer will dismiss the complaint.

The hearing officer will conduct the conference and complete an investigation.

The hearing officer will provide a written response to the complaint within 20 district business days of the conference.

2 LEVEL II

The complainant may appeal a Level I decision through the complaint portal if they submit the appeal within 20 calendar days of the date of the Level I response. The appeal must be submitted by close of business (4:30PM) on the 20th calendar day.

If the appeal was properly and timely filed, the hearing officer will contact the complainant and hold the Level II conference within 10 district business days of the district's receipt of the appeal, unless otherwise agreed by the parties.

If the appeal was not properly or timely filed, the hearing officer will dismiss the appeal.

The hearing officer will conduct the conference and review the Level I record.

The hearing officer will provide a written response to the appeal within 20 district business days of the conference.

3 LEVEL III

The complainant may appeal a Level II decision through the complaint portal if they submit the appeal within 20 calendar days of the date of the Level II response. The appeal must be submitted by close of business (4:30PM) on the 20th calendar day.

If the appeal was properly and timely filed, the Legal Services Department will inform the Board of Trustees and provide them with a copy of the Level II record.

If the appeal was not properly and timely filed, the Legal Services Department will dismiss the appeal.

The Legal Services Department, in consultation with the Board President, will identify the Board Meeting at which the appeal will be considered within 60 calendar days of the Level II decision and inform the complainant of the date.

The appeal will be considered by the Board of Trustees on written submission unless two or more Board members request the complaint be considered in a hearing at least 10 days prior to the Board meeting.

- If the appeal is to be considered on written submission, the complainant's Level III appeal serves as their written submission.
- If the appeal is to be considered in a hearing, the complainant and hearing officers will present information relevant to the appeal to the Board of Trustees at the Board Meeting.

The Board of Trustees will either vote on the appeal in open session or the Board will otherwise issue a written decision within 30 dates of the meeting at which the Level III appeal was considered.



FFH, FFI, & DIA COMPLAINTS

DISCRIMINATION, HARASSMENT, RETALIATION BULLYING

1 STEP 1

Upon receipt of the allegations of prohibited conduct, the assigned investigator will notify the complainant and the alleged perpetrator that the District has initiated an investigation into the allegations.

If a complaint containing allegations of prohibited conduct is misfiled as a complaint under Board Policy FNG or DGBA, the District will abate the FNG/DGBA grievance process and address the prohibited conduct allegations first through FFH, FFI, or DIA, as appropriate. After receiving prohibited conduct findings, the complainant may choose to reinstate or withdraw their previously filed FNG or DGBA complaint.

2 STEP 3

The investigator will complete and send a findings letter to both the complainant and the alleged perpetrator.

3 STEP 2

The investigator will make every effort to complete the investigation within 10 district business days of the receipt of the allegations by the district.

If more time is required to complete a thorough investigation, the investigator will provide written notice to the complainant and the alleged perpetrator that additional time will be required.

4 STEP 4

If the complainant chooses to appeal the findings, the complainant must appeal the findings within either 15 calendar days of receiving the DIA findings or 20 calendar days receiving the FFH/FFI findings, respectively.



TITLE IX SEXUAL HARASSMENT FORMAL COMPLAINTS (FFH)

1 RECEIPT OF TITLE IX FORMAL COMPLAINT

Upon receipt of a formal complaint that does not necessitate the involvement of CPS or law enforcement, the Campus Title IX Coordinator will share the Title IX Complaint Process, supportive measures that will be provided, and a copy of Board Policies FFH (LEGAL) and FFH (LOCAL) with both the Complainant and the Respondent.

2 INVESTIGATION

The investigator will conduct a thorough investigation including interviews with all parties and witnesses, gathering documentation, and reviewing any additional relevant evidence.

Upon completion of the investigation, the investigator will share a draft investigation report with both the Complainant and Respondent. The parties will have 10 calendar days in which to respond to the draft report.

After receiving the responses to the draft report, if any, the investigator will finalize the investigation report and share the final report with both parties and the assigned decision-maker.

3 DECISION

The decision-maker will review all of the evidence and the final investigative report to render a decision regarding the complaint.

The decision-maker will inform all parties of the decision and provide information about the process of appealing the decision.

Either party may appeal the decision within 10 days of the issuance of the decision on the following bases:

- Procedural irregularity
- New evidence that was not available at the time of the investigation
- Conflict of interest or bias

4 APPEAL

Appeals are conducted by the district-wide Appeals Committee which consists of the Chief Leadership Officer, the Chief Human Resources Officer, and the Executive Director of Student Services.

The Appeals Committee will notify all parties that a request for appeal has been filed and the parties have 10 calendar days to submit statements regarding the appeal.

The Appeals Committee will review all of the evidence and the statements of the parties and issue a written decision. The decision of the Appeals Committee is final.



ADMINISTRATIVE COMPLAINT PROCESS

COMPLAINTS REGARDING EXTRACURRICULAR ACTIVITIES COMPLAINTS REGARDING DISCIPLINARY ACTIONS OTHER THAN EXPULSION (NON-BOARD LEVEL APPEALS)

ALL TIMELINES, FILING REQUIREMENTS, CONSOLIDATION PROVISIONS, AND GROUNDS FOR DISMISSAL DESCRIBED IN BOARD POLICY FNG (LOCAL) APPLY TO THE ADMINISTRATIVE COMPLAINT PROCESS AS WELL, EXCEPT AS SPECIFIED BELOW.



1 LEVEL I

The complaint must be filed within 60 calendar days of the date the complainant became aware, or should have become aware of the incident or information that is the basis of the allegation.

If the parent informally attempted to resolve the grievance, the complaint must be filed within the lesser of 30 days of when the parent was provided information about how to file a complaint or 90 days from the Date of Incident if filing information was not provided to the parent.

If the complaint was not properly and timely filed, the hearing officer will dismiss the complaint.

The hearing officer will conduct the conference and complete an investigation.

The hearing officer will provide a written response to the complaint within 20 district business days of the conference.

2 LEVEL II

The complainant may appeal a level I decision through the complaint portal if they submit the appeal within 20 district business days of the date of the Level I response. The appeal must be submitted by close of business (4:30PM) on the 20th business day.

If the appeal was properly and timely filed, the hearing officer will contact the complainant and hold the Level II conference within 10 district business days of the district's receipt of the appeal unless otherwise agreed by the parties.

If the appeal was not properly or timely filed, the hearing officer will dismiss the appeal.

The hearing officer will conduct the conference and review the Level I record.

The hearing officer will provide a written response to the appeal within 20 district business days of the conference. The Level II decision is final.



APPEAL OF EXPULSION (FOD)



1

STEP 1

If, after a properly held due process hearing, the District expels a student, the student may appeal the expulsion to the Board.

2

STEP 2

The Office of the Deputy Superintendent, in consultation with the Board President, will identify the Board Meeting at which the appeal will be considered and notify the student of the date.

3

STEP 3

The appeal will be considered by the Board of Trustees in a hearing. The complainant and the Executive Director of Student Services or designee will present information relevant to the appeal to the Board of Trustees at the Board Meeting.

4

STEP 4

The Board of Trustees will vote on the appeal in open session and a written confirmation of the decision will be sent to the student within 10 district business days of the meeting.



APPEAL OF A GRADE (EIA)

1

STEP 1

If a student wishes to challenge the final grade assigned to the student by the teacher, the student may file an appeal of the grade.

2

STEP 2

The Legal Services Department, in consultation with the Board President, will identify the Board Meeting at which the appeal will be considered and notify the student of the date.

3

STEP 3

The appeal will be considered by the Board of Trustees in a hearing. The complainant and the Chief Academic Officer or designee will present information relevant to the appeal to the Board of Trustees at the Board Meeting.

4

STEP 4

The Board of Trustees will vote on the appeal in open session and a written confirmation of the decision will be sent to the student within 10 district business days of the meeting.



REQUEST TO AMEND A STUDENT'S EDUCATION RECORDS (FL)

1

PRINCIPAL REVIEW

Upon receipt of a parent's request to amend the content of a student's education record, the Legal Services Department will forward the request to the campus principal for review.

The campus principal will issue a written decision on the request within 15 district business days of the District's receipt of the request.

If the parent disagrees with the decision of the principal, the parent may request a hearing to appeal the decision within 10 district business days of the date of the decision.

2

HEARING

The hearing officer will schedule the hearing to occur within 10 district business days of the district's receipt of the request for a hearing.

The hearing officer will conduct the hearing and provide a written response to the parent within 10 district business days of the date of the hearing.

If the hearing officer upholds the principal's decision, the response must include notice to the parent of the parent's right to place a statement in the record commenting on the contested information within 30 days after receiving the response. The hearing officer's decision is final.



ADDITIONAL PROCEDURES

CONSOLIDATION OF COMPLAINTS

ALL COMPLAINTS FILED BY A SINGLE COMPLAINANT WILL BE CONSOLIDATED AS NECESSARY TO ENSURE THE FEWEST HEARINGS POSSIBLE. FOR EXAMPLE, IF AN INDIVIDUAL FILES A LEVEL II APPEAL OF A LEVEL I DECISION, AND A NEW LEVEL I COMPLAINT ON THE SAME DAY, THE LEVEL II APPEAL WILL BE ABATED PENDING THE COMPLETION OF THE NEW LEVEL I COMPLAINT AND IF THE FINDINGS OF THE NEW LEVEL I COMPLAINT ARE APPEALED, THE APPEALS WILL BE CONSOLIDATED SO THAT A SINGLE LEVEL II HEARING FOR BOTH APPEALS CAN BE HELD.

ABATEMENT OF COMPLAINTS

COMPLAINTS MAY BE ABATED FOR THE FOLLOWING REASONS:

1. To consolidate multiple complaints from a single complainant;
2. If the hearing officer determines that more time is required to complete a thorough investigation; or
3. By mutual agreement of the complainant and the District

FILING REQUIREMENTS

All complaints must be properly and timely filed in accordance with Frisco ISD Board Policy and the Administrative Complaint Process. Complaints that are not properly and timely filed will be dismissed.

Grounds for dismissal include:

1. Complaint filed outside of required timelines;
2. Content of complaint has been rendered moot;
3. Complaint filed regarding an issues that has been previously addressed in a prior complaint;
4. Complaint regarding conduct by a party other than the District or its agent;
5. Complaint only includes requested remedies that cannot be legally granted by the District;
6. Complaint includes no requested remedies;
7. Complaint includes only remedies that have already been granted;
8. Complaint is regarding a decision or incident that has not yet occurred; or
9. Any combination of the above.

HOW TO APPEAL

COMPLAINANTS MAY APPEAL THE DECISIONS OF THE HEARING OFFICERS IN ACCORDANCE WITH THE APPROPRIATE POLICY OR PROCESS AS LISTED ABOVE.

COMPLAINANTS WISHING TO APPEAL A DECISION SHOULD LOGIN TO THE FRISCO ISD REQUEST CENTER, CLICK "MY REQUEST CENTER," THEN CLICK, "VIEW MY REQUESTS" AND SELECT THE COMPLAINT THEY WISH TO APPEAL. UPON OPENING THE RELEVANT COMPLAINT, COMPLAINANTS WILL BE GIVEN THE OPTION TO INDICATE THEIR DESIRE TO APPEAL THE DECISION AND COMPLETE THE REQUIRED INFORMATION.

CONTACT

COMPLAINT RESOLUTION

COMPLAINTRESOLUTION@FRISCOISD.ORG

DISTRICT TITLE IX COORDINATOR

COMPLAINTRESOLUTION@FRISCOISD.ORG

CAMPUS TITLE IX COORDINATORS

[CLICK HERE](#)

